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Case Number: 25STCV22995 Hearing Date: July 7, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA, et al.

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14, et al.

et al.

BOBBETTE MARSCHIK, et al.

et al.

Plaintiff, et al.

v. et al.

et al.

AMERICAN HONDA MOTORS, INC., et al.

et al.

Defendants. et al.

et al. Case No. et al. 25STCV22995

et al. et al.

Case Hearing Date: July 7, 2026

Case Time: 9:00 a.m.

Case

Case [TENTATIVE] ORDER RE: Case

Case

Case DEFENDANT AMERICAN HONDA MOTOR CO., INC'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Case

I.

Background

On August 5, 2025, Plaintiff Bobbette Marschik filed her complaint for personal injury alleging she developed mesothelioma from direct non-occupational exposure to asbestos contaminated consumer talc products and from indirect occupational exposure to asbestos-containing automotive products through her ex-husband's work at a service station.

On April 22, 2026, Defendant American Honda Motor Co., Inc. ("Honda" or "Defendant") moved for summary judgment or, in the alternative, summary adjudication, arguing Plaintiff lacks and cannot reasonably obtain evidence that she worked with or around an asbestos-containing product for which Honda is responsible.

On May 14, 2026, Plaintiff opposed, arguing that Honda failed to shift its burden on summary judgment because Ms. Marschik testified that Honda products were used at her worksite.

On June 15, 2026, Honda replied, arguing that there is no evidence that Ms. Marschik was exposed to asbestos fibers from any product distributed by Honda.

Honda fails to meet its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Ms. Marschik was exposed to an asbestos-containing product for which it is responsible. The burden does not shift to Plaintiff. Accordingly, the motion for summary judgment is denied. Honda's motion for summary adjudication to the cause of action for breach of implied warranty is also denied for the same reasons as the motion for summary judgment.

Honda satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Honda engaged in conduct amounting to malice, fraud, or oppression. Honda also satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Honda misrepresented the safety of its product or intentionally concealed the hazards of its products. Plaintiff failed to present affirmative evidence supporting her fraud-based causes of action and her demand for punitive damages. Honda's motions for summary adjudication of the fraud-based causes of action and the demand for punitive damages are granted.

II.

Evidentiary Objections

Honda's Objections

Overruled:

1. Deposition of Bobbette

Marschik, Vol. I., 78:3-8. Honda objects to this testimony on the grounds that the question asked was leading and called for speculation. The excerpted portion of the deposition reads as follows:

"Q.

How about Honda? For the Honda OEM or dealer equipment, did that include brake equipment? 5 DEFENSE COUNSEL: Leading. Assumes facts. 6 THE WITNESS: The Hondas -- 7 DEFENSE COUNSEL: Calls for speculation. 8 THE WITNESS: -- brakes, yes."

(Eberlein Decl., Exh. K at 78:3-8.) The question asked was not leading. The question likewise does not call for speculation because earlier in the deposition, defense counsel asks Ms. Marschik how she came to know that certain brands were being used at the shop and Ms. Marschik responded

as follows:

“Q: And how did you come to learn that these brands were being used, installed and removed, these brands of equipment? A: Well...I—I’m paying, you know, all—all the bills that came in, so there are invoices, and I was in charge of count - -- accounts payable...Q: Okay. Would you see brand names on invoices and bills and things like that? A: Yes.”

(Eberlein Decl., Exh. K at 63:23-10.) Ms. Marschik’s testimony as to whether the Honda OEM parts used at the shop included brakes is not speculative because it is based on her personal knowledge that she paid invoices for Honda parts.

Sustained:

3. Deposition of James

Jongkind, corporate representative for Honda, dated June 28, 2022, p. 129:12-16; 130:7-131:1; 134:4-14, attached as Exhibit “H” to the Declaration of Laurel Halbany. “Current Intelligence Bulletin” dated August 8, 1975, attached as Exhibit “J” to the Declaration of Laurel Halbany.

This

testimony is inadmissible hearsay. Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiffs fail to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 [“The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony.”].) Plaintiff offers no evidence or argument to support the admissibility of this deposition and does not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition.

5.

Objection number 5 is sustained for the same reasons as objection number 3.

Not relied upon: 2, 4

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure” to asbestos-containing products and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate

whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineweaver).)

Where a

plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant’s product. (Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

i. Defendant’s Burden:

Factually Devoid

Honda

moves for summary judgment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which it was responsible. Specifically, Honda argues that Plaintiff’s discovery responses and deposition testimony are devoid of facts establishing that Ms. Marschik was exposed to a Honda product containing asbestos. (Motion at pp.1, 4-13 [“Plaintiff served factually devoid responses to AHM’s ‘all facts’ discovery and the burden is shifted to plaintiff. Plaintiff’s causes of action fail as a matter of law because plaintiff cannot establish the essential element of causation. After comprehensive discovery, plaintiff has produced no evidence - only speculation. Plaintiff’s witnesses provide no competent evidence in support of any claims against AHM. Plaintiff identifies no documents that establish the elements of the contested claims.”].)

In

opposition, Plaintiff argues that summary judgment is not appropriate because her discovery responses contain specific facts regarding work on Honda vehicles and the presence of Honda friction products at Ms. Marschik’s worksites. (Opp. at pp.6-7 [“The evidence regarding Ms. Marschik’s exposure to

asbestos-containing Honda's friction parts is more than sufficient to confirm the existence of triable issues of fact. Plaintiff, her son, and John Jessup all testified about work on Hondas at the service centers owned and operated by Ms. Marschik and her husband. They also recall dust in the air as a result of such work, and it is undisputed that Honda brakes, clutches and gaskets contained asbestos during the years of such exposure."].)

In reply, Honda reiterates that it is entitled to summary judgment because "plaintiff cannot identify any brake, clutch or gasket part removed from any Honda vehicle and cannot identify them as being original equipment." (Reply at p.2.)

Honda relies on Plaintiff's responses to written discovery, Plaintiff's deposition transcript, and transcripts of the depositions of Heidi Salerno, Mark Salerno, and John Jessup to support its motion. When Honda asked Plaintiff to state all facts that support her cause of action for negligence against Honda, Plaintiff responded to special interrogatory number 1 in relevant part:

"Plaintiff

Bobbette Marschik was exposed to Defendant AMERICAN HONDA MOTOR CO., INC.'s (herein "AHM") asbestos-containing products including but not limited to automobiles with asbestos-containing gaskets, friction materials and brakes, brake pads, braking systems as well as other automotive replacement parts, from approximately 1964-1987 working with her ex-husband Robert Salerno at the four gas and automotive repair stations they owned. Ms. Marschik was around others who performed automotive work and maintenance checks on vehicles. Ms. Marschik worked in the offices at the gas stations and Salerno's Service Center, however, the offices opened directly into the shops and service bays. Robert Salerno conducted routine maintenance on all cars, including but not limited to, foreign and domestic cars. Salerno's Service Center performed vehicle work including but not limited to, automotive repairs to brakes, tires, and paint; body work; engine overhauls; inspections; and California brake inspections. At times, Robert Salerno would take used work rags and clothing home for laundering.

Plaintiff

worked with her ex-husband as the accounting clerk every day from 1964-1987 in the gas stations and service station that they owned. Bobbette was exposed to asbestos-containing gaskets, friction materials and brakes, brake pads,

braking systems and other automotive repair equipment while working at each of the gas stations and Salerno's Service Center. Bobbette's first husband, Robert Salerno, owned four gas stations during their marriage: Union 76 gas station/service station in San Bernardino, CA, Union 76 gas station /service station in Rialto, CA (Two locations in Rialto, CA), and mobile gas station/service station in Redlands, CA."

(Eberlein

Decl., Exh. G at pp. 2-3.) Plaintiff responded to the special interrogatories directed at her causes of action for strict liability and false representation by referring back to the response to interrogatory number 1. (Id. at pp.12-13.)

Ms.

Marschik testified at her deposition that she came to know which brands' parts were being used at the service stations where she worked because she was responsible for accounts payable and saw brand names on invoices and bills. (Eberlein Decl., Exh. K at 63:23-64:10 ["Q: And how did you come to learn that these brands were being used, installed, and removed, these brands of equipment?...A: --I--I'm paying, you know, all—all the bills that came in, so there are invoices, and I was in charge of count- -- accounts payable."].) Ms. Marschik also saw brand names on packages in the shop or in storage. (Id. at 64:15-18.) Ms. Marschik could not recall details of any particular brake or clutch job and could not identify which brands were used in those jobs. (Id. at 64:19-25.) Ms. Marschik recalls that the Salerno service center ("Salerno") used a mixture of after market and original ("OEM") parts. (Id. at 66:12-16.) Ms. Marschik recalls that her family shops used OEM parts from a number of manufacturers, including Volkswagen, Honda, Nissan, and Mazda, among others. (Id. at 67:9-24.) Of the Honda OEM parts, Ms. Marschik recalls that the shops used brakes . (Id. at 78:3-8 ["Q: How about Honda? For the Honda OEM or dealer equipment, did that include brake equipment?...A: The Hondas...brakes, yes."].) Although Ms. Marschik recalled seeing Honda parts being stored in the service station storage rooms, she did not know whether the packages contained brakes or other parts. (Id. at 445:20-24.) Ms. Marschik knew the family shops used Honda brakes from information she saw on an invoice or work order. (Id. at 446:6-19 ["Q:...As to Nissan, you said that you did not associate that there...So is the only way that you associate any parts with Nissan at this -- at various stations, is it because of something that was on an invoice or a work order? A: I don't recall. Q: Can you think of any other way? A: No. Q: Okay. Would the same be true for Honda? You don't have

any other way of associating any parts with Honda other than what might have been on an invoice or a work order? A: Correct.”].)

Ms.

Marschik could not estimate the frequency of the shops' work with brake discs, clutches, gaskets, or exhaust components. (Eberlein Decl., Exh. K at 383:12-384:21.) Ms. Marschik did not see writings, markings, or logos on any parts that were being taken off vehicles at her family shops. (Id. at 388:9-389:6.) Ms. Marschik never purchased products used at the shops and never watched anyone performing brake work. (Id. at 439:17-20, 441:14-23.) Ms. Marschik could not describe packages for any parts and never saw any open packages for brakes to be installed on a Honda. (Id. at 447:5-17.)

Ms.

Marschik's daughter, Heidi Salerno, did not have knowledge of whether Honda parts were present at the family shops, whether anyone worked on Honda vehicles or brakes at the shops, or whether Ms. Marschik was present when brake work was performed. (Eberlein Decl., Exh. L at 17:4-7, 22:17-25, 23:8-20, 37:8-11, 39:6-14, 81:14-23, 83:2-22, 107:9-1084, 112:24-113:12.) Ms. Marschik's son, Mark Salerno, testified that he ordered parts for the family shops from a mix of dealerships and shops selling aftermarket parts. (Eberlein Decl., Exh. M at 27:2-19.) Mr. Salerno ordered OEM parts for Honda vehicles from a Honda dealer in San Bernardino. (Id. at 29:5-7.) A former employee of Ms. Marschik's family shops, John Jessup, testified that he has no recollection of seeing brake work done on Honda vehicles. (Eberlein Decl., Exh. N at 78:25-79:11.) Mr. Jessup had no information that Ms. Marschik was present when any work was done on Honda vehicles at Salerno or that Ms. Marschik purchased any Honda parts. (Id. 80:18-81:24.)

Honda fails

to meet its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which it was responsible. Plaintiff's discovery responses were required to provide a factual basis to show products for which Honda was responsible were present at her worksite and that these products contained asbestos. (Turley, supra, 18 Cal.App.5th at p. 980, Collin, supra, 228 Cal.App.4th at p. 593.)

The discovery record establishes that Ms. Marschik paid invoices for Honda brakes and recalls the shops using Honda OEM brakes. (Ex. K at 67:9-24,

78:3-8, 446:6-19.) Ms. Marschik knew the family shops used Honda brakes because she saw this information on the invoices and work orders she processed. (Id. at 446:6-19.) These facts support the inference that Honda brakes were present at Ms. Marschik's worksites. The record also establishes the Ms. Marschik worked in offices open to where brakes were being replaced. Honda fails to dispute that the Honda brakes contained asbestos at this time. Even if it did, Plaintiff provides Honda's prior responses to standard interrogatories wherein Honda identified "third party component manufactured automotive brake linings, gaskets, and clutch disc facings" as asbestos-containing products it distributed "as factory-installed original equipment in and as third-party manufactured Genuine Honda Part replacement service parts for Honda brand automobiles beginning in 1969." (Halbany Decl., Exh. G at pp.22-23.) It is reasonable to infer from these facts that Honda's asbestos-containing brakes were present at the worksites and that Ms. Marschik would have been exposed to asbestos dust if a mechanic worked with a Honda brake in the shop.

Honda argues that Plaintiff relies on speculation based on hearsay to state that Honda brakes were present at her worksites. Honda also argues that product identification may not be based on hearsay. In support of this argument, Honda cites *DiCola v. White Brothers Performance Products, Inc.* (2008) 158 Cal. App. 4th 666 for the proposition that product identification cannot be based on markings on boxes or packaging. However, Ms. Marschik stated in her deposition that she could not describe the packaging for Honda parts. (Eberlein Decl., Exh. K at 445:20-24, 447:5-17.) Rather, Ms. Marschik testified that that she knew the shops used Honda brakes because she paid bills and invoices for them. (Id. at 64:15-18, 446:6-19.) This testimony is based on personal knowledge and is not hearsay. This evidence supports an inference that Honda brakes were present at Ms. Marschik's worksite because it shows the shops purchased the brakes.

Lineaweaver

v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409 is instructive here. A defendant there, Plant, was the exclusive distributor of insulation products marketed under the Pabco trademark. (Lineaweaver, *supra*, 31 Cal.App.4th at p. 1413.) One plaintiff, Lineaweaver, was a laborer at a refinery. (Id.) The evidence was sufficient to support an inference that Lineaweaver was exposed to Plant's asbestos products because Plant's insulation was definitely at his worksite, Plant was the exclusive distributor in the area of Pabco asbestos insulation products at the relevant time, Lineaweaver worked directly

with the asbestos insulation, Lineaweaver worked throughout the refinery which had insulation over two-thirds of its pipes and equipment, Lineaweaver saw boxes of Pabco products at the refinery, Plant was a significant supplier of asbestos products, performing about 50% of the insulation work at the refinery, and another major insulation contractor used Pabco insulation as fill-in supplies, constituting another 10 to 15 percent of the refinery's insulation installed by one particular contractor. (Id., at pp. 1419-1420.)

Although there was no direct evidence that the plaintiff was exposed to Plant's insulation, the significant circumstantial evidence was sufficient to support a reasonable inference of exposure. (Id., at p. 1420.)

Here, like in Lineaweaver, there is no direct evidence that Ms. Marschik was present when mechanics at the service stations where she worked were replacing brakes. However, evidence that Ms. Marschik paid invoices for Honda brakes, that Mr. Salerno ordered OEM parts from a Honda dealer for Honda vehicles, and that Ms. Marschik worked in an office open to the auto shop where brake work took place is circumstantial evidence that Ms. Marschik was exposed to Honda brakes. It is reasonable to infer from the fact that the service centers bought OEM parts for Honda vehicles and the fact that Ms. Marschik paid invoices for Honda brakes that Honda brakes were present at the worksite. It is also reasonable to infer from the fact that Ms. Marschik's offices opened directly to the bays where brake work was taking place that she would have been exposed to brake dust if a mechanic worked with Honda brakes. The discovery responses and deposition testimony therefore contain sufficient circumstantial evidence to support an inference that the Honda brakes were present at Ms. Marschik's worksites and that these products contained asbestos.

Plaintiff's discovery responses

contained sufficient facts to support her claim that she was exposed to asbestos by Honda brake products. Accordingly, Honda fails to meet its initial burden on summary judgment. The motion for summary judgment is denied.

C.

Fraud

Honda

moves for summary adjudication of the fraud-based causes of action for (1) false representation and (2) intentional tort/intentional failure to warn/concealment (hereinafter "fraudulent concealment") on the grounds that

Plaintiff lacks and cannot reasonably obtain evidence that Honda misrepresented the safety of its products or that it had a duty to disclose the hazards of its products to her.

False

representation under Restatement of Torts section 402B establishes “liability for injuries caused by justifiable reliance on false advertising.” (Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1750.) Under this section “ [o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.’ [Citation.]” (Id. at pp. 1750-1751.) “The rule ‘is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.’ [Citation.]” (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the “reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.’ [Citation.]” (Westlye, supra, 17 Cal.App.4th at p. 1751.)

The elements

of a cause of action for fraudulent concealment or fraud by non-disclosure are: “(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud by non-disclosure or concealment: “ (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]’ ” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, “As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties.” (Id. at p. 337.) Unlike products liability, where there is a “general principle that a manufacturer has a duty to warn consumers of a product’s hazards and faults,” a duty to disclose material facts arises in the fraud context “only where there is already a sufficient relationship or transaction between the parties.” (Bigler-Engler, supra, 7 Cal.App.5th at p.312.)

i.

Defendant’s Burden: Factually Devoid

Honda

moves for summary adjudication of the causes of action for false representation and fraudulent concealment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Honda made a false representation to her or that Honda concealed the safety of its products. (Motion at pp. 13, 16.)

In

opposition, Plaintiff argues that “Honda’s actions in failing to disclose the deadly hazards created by its products while knowing of such hazards is the type of nondisclosure that constitutes false representation. Honda is not entitled to summary adjudication of this issue.” (Opp. at p.9.)

When

Honda asked Plaintiff to state all facts supporting her causes of action for false representation and fraudulent concealment, Plaintiff responded by referring to her response to interrogatory number 1, which states in relevant part:

“Despite its

knowledge of the hazards of asbestos, AHM made no effort to provide this information and did not provide any of this information to end users and consumers, including Plaintiff Bobbette Marschik and her co-workers, and others similarly situated, performing such work, despite AHM's superior knowledge and awareness of the asbestos hazards created during the normal use, installation, repair, and removal of its own products. Instead, Defendant AHM, through its officers, agents, employees, directors and various divisions, acting in concert with its above co-conspirators then, and thereafter continued to, withhold and in fact suppress such information from end users and consumers, including Plaintiff Bobbette Marschik, instead warranting, advertising and merchandising the safety of AHM's asbestos-containing products, which misrepresentations and warranties of safety merchantability were relied upon by end users and consumers, including Plaintiff, and others similarly situated to her harm and detriment.

Moreover, no open and notorious warnings for all foreseeable end users of the above listed Defendant's asbestos-containing products (such as a skull-and-crossbones) were included on their respective products or packaging in order to warn users of the hazards and dangers of such products. As a result, Plaintiff Bobbette Marschik took no precautions to protect herself from the asbestos- containing dust, debris, fiber and particulate from AHM's asbestos-containing products.

As a result of Defendant AHM's actions, omissions, and negligence, Plaintiff Bobbette Marschik developed an asbestos-related disease, to wit: mesothelioma. Defendant AHM knew, or should have known, that Plaintiff Bobbette Marschik would be at such risk for developing such diseases. Defendant AHM's conduct subjected Plaintiff Bobbette Marschik and others like her to cruel and unjust hardships in conscious disregard for the rights and safety of such persons. Defendant AHM knew, or should have known, of the likelihood of such consequences and consciously disregarded such likely outcomes. Defendant AHM should have avoided such dangerous consequences but willfully and deliberately failed to do so. AHM acted with malice, fraud and oppression in its conduct with regard to its continued manufacture, distribution, marketing, labeling, sale and/or supply of raw asbestos or asbestos-containing products. Despite Defendant's knowledge of the extraordinary health hazards associated with asbestos exposure, AHM continued to manufacture, distribute, market, label, sell and/or supply such products, without warnings or proper handling instructions, for decades after such knowledge was first known by it."

(Eberlein
Decl., Exh. G at p. 8.)

Ms.

Marschik stipulated at her deposition that she would not provide testimony regarding corporate knowledge for the defendants in this case. (Eberlein Decl., Exh. K at 414:1-21.) Ms. Marschik also testified that she had never spoken to anyone from Honda. (Id. 452:2-4.)

Honda satisfies its initial burden to prove that Ms. Marschik lacks and cannot reasonably obtain evidence to support her fraud-based causes of action. For the false representation cause of action, Ms. Marschik's deposition testimony establishes that she had never communicated with anyone from Honda. (Eberlein Decl., Exh. K at 452:2-4.) This evidence establishes that Honda could not have made misrepresentations about its' products' safety to Ms. Marschik because she admits she had no communication with Honda. Although Ms. Marschik's interrogatory responses state Honda knew of the dangers of asbestos in its products and misrepresented the safety of their products, Ms. Marschik's deposition testimony establishes she had never received these alleged misrepresentations.

As for the cause of action for fraudulent concealment, the interrogatory responses fail to state the factual basis for Plaintiff's contention that Honda concealed the hazards of its products or that Ms. Marschik relied on the alleged concealment. Ms. Marschik also stipulated that she would not provide testimony regarding corporate knowledge and thus has no knowledge of whether Honda knew of the hazards associated with its products and concealed them.

Plaintiff's discovery responses therefore give rise to an inference that Plaintiff lacks and cannot reasonably obtain evidence to support her fraud-based causes of action. Accordingly, the burden shifts to Plaintiff.

ii.

Plaintiff's Burden

Plaintiff argues in opposition that Honda is not entitled to summary adjudication of the false representation and

intentional tort claims because it failed to disclose the deadly hazards of its products. As discussed, the discovery record establishes that Honda never communicated with Ms. Marschik. Although Plaintiff argues in her separate statement that direct communication between a plaintiff and a corporation is not necessary to support a cause of action for false representation, Plaintiff fails to submit evidence that Honda made any representation to Plaintiff. As for the cause of action for fraudulent concealment, Plaintiff argues that her discovery responses are not devoid of facts supporting this cause of action because her responses specifically state Honda had knowledge of the hazards of its products and concealed them. (RUMF No. 148.) Plaintiff also argues that Honda never asked her to identify facts showing Honda had knowledge of hazards specifically with any products containing encapsulated asbestos. (Id.)

As discussed, the interrogatory responses asking Plaintiff to state all facts supporting the cause of action for fraudulent concealment failed to state the factual basis for Plaintiff's assertion that Honda concealed the hazards associated with its products. Additionally, Honda propounded comprehensive discovery on Plaintiff seeking all facts supporting the fraud-based cause of action. Plaintiff's factually devoid response thus supports an inference that she lacks and cannot reasonably obtain evidence to support these causes of action. Plaintiff thus fails to meet her burden on summary adjudication as to the cause of action for false representation.

Accordingly, Plaintiff fails to present affirmative evidence supporting her fraud-based causes of action against Honda. The motions for summary adjudication for the causes of action for false representation and fraudulent concealment are granted.

D.

Breach of Express and Implied Warranty

Honda moves for summary adjudication of the cause of action for breach of implied warranty on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Honda breached any warranty to Plaintiff. (Motion at p. 18.)

"Vertical privity is a prerequisite in California for recovery on a theory of breach of the implied warranties of fitness and merchantability." (United States Roofing, Inc. v.

Credit Alliance Corp. (1991) 228 Cal.App.3d 1431, 1441, internal citations omitted.) However, it is well-settled that “employee[s] should be considered a member of the industrial ‘family’ of the employer—whether corporate or private— and to thus stand in such privity to the manufacturer as to permit the employee[s] to be covered by warranties made to the purchaser-employer.” (Peterson v. Lamb Rubber Co. (1960) 54 Cal.2d 339, 347.)

Here, Plaintiff’s interrogatory responses state that “AHM purposefully misrepresented the safety of their foregoing asbestos products, instead intentionally and fraudulently warranting them as safe and merchantable, for their intended use.” (Eberlein Decl., Exh. G at p.8.) Honda’s motion for summary judgment was denied because it failed to meet its burden that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which Honda was responsible. There is no dispute that Ms. Marschik was an employee of the service centers she operated with her then-husband. As an employee of the service centers that purchased the products at issue, Ms. Marschik stands in privity with Honda and is covered by the warranties made to those service centers. Because the motion for summary judgment was denied, triable issues of material fact remain over whether Honda breached any implied or express warranties made to the service centers regarding the safety of its products. The motion for summary adjudication of the cause of action for breach of implied and express warranty is denied.

E.

Punitive Damages

When a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. “Although the clear and convincing evidentiary standard is a stringent one, ‘it does not impose on a plaintiff the obligation to “prove” a case for punitive damages at summary judgment [or summary adjudication.]’ [Citations.] Even so, ‘where the plaintiff’s ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.’ [Citation.]” (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 11581159.) For a corporate defendant, the

oppression, fraud or malice “must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied “ ‘if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in “willful and conscious disregard of the rights or safety of others.” ’ [Citation.]” (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 (“Morgan”).) A plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id. at p. 1091.)

“ ‘[I]ntentionally marketing a defective product knowing that it might cause injury and death is ‘highly reprehensible.’ [Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205 Cal.App.4th 68, 85.) Punitive damages may be available when a defendant knows the dangers of asbestos, took action to protect its own employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1300.) Such evidence “was sufficient to show malice, that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id. at pp. 1300-1301.)

i.

Defendant’s Burden: Factually Devoid

Honda moves for summary adjudication of the demand for punitive damages on the grounds that Plaintiff lacks and cannot reasonably obtain evidence establishing by clear and convincing evidence that Honda acted with malice, fraud, or oppression. (Motion at pp. 18-20.)

In opposition, Plaintiff, citing Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270 (“Pfeifer”), argues that Honda “knew or should have known about the hazards of asbestos, knew that its products contained asbestos, and knew that asbestos dust was created from working with them. Yet it continued to sell products without any warning. This was a conscious disregard of health and safety and, therefore, sufficient to raise triable issues as to culpability for punitive damages.

Honda has failed to meet its burden to show that summary adjudication of Plaintiff's punitive damages claim is warranted and Plaintiff has shown that substantial evidence exists supporting such claim." (Opp. at p.12.)

In Pfeifer,

evidence was sufficient to establish by clear and convincing evidence that a manufacturer of gaskets, JCI, knew that asbestos was hazardous by the 1970s when the Occupational Safety and Health Administration ("OSHA") promulgated regulations requiring manufacturers of asbestos-based products to monitor concentrations of asbestos fibers in the air in its factories. (Pfeifer, supra, 220 Cal.App.4th at p.1300.) JCI also prepared safety data sheets for its sheet gaskets warning its employees that exposure to asbestos could cause asbestosis and cancer. (Id.) OSHA regulations also required manufacturers to place warning labels on products unless the fibers had been modified by a bonding agent that limited the asbestos released during foreseeable use of the gaskets. (Id.) JCI knew asbestos dust was released when its users replaced fragmented old. (Id.) Additionally, JCI knew products did not fully encapsulate the asbestos fibers and that removal methods resulted in concentrations of asbestos fibers that greatly exceeded ordinary background levels. (Id.) The evidence supported a finding that JCI acted with a conscious disregard for the safety of others because it understood that asbestos dust endangered workers and continued to sell a product that generated considerable asbestos dust without warnings. (Id. at pp.1300-1301.)

Here, Plaintiff's

interrogatory responses state in relevant part:

"It was known and

foreseeable to AHM that the above-identified asbestos-containing products were used, installed, removed, handled and otherwise disturbed in the manner described above when the above- identified asbestos-containing products left AHM's possession, particularly given its long-standing relationship and knowledge of use of these products; yet, AHM provided no warnings to Plaintiff Bobbette Marschik or any other end user and bystander about the dangers of the above-identified asbestos-containing products. AHM had a duty to warn users of its products of the dangers of asbestos materials, but failed to do so. As a result, asbestos materials used, installed, removed, handled and otherwise disturbed in the manner described above without any precautions being taken and Plaintiff Bobbette Marschik suffered heavy exposure to asbestos. Such exposure

to asbestos contributed to Plaintiff Bobbette Marschik developing mesothelioma.”

(Eberlein Decl.,
Exh. G at p.7.)

Additionally,
Plaintiff’s responses to requests for production direct Honda to OSHA standards relating to asbestos to show that Honda was on notice of the hazards of asbestos in its products:

“Plaintiff also identifies OSHA standards relating to asbestos, found at Code of Federal Regulations, Title 29, Chapter 17, Section 1910, et seq.; and Title 8, Section 5208 of the California OSHA regulations pertaining to asbestos exposure. Defendant was subject to these regulations, which thus but Defendant on constructive if not actual notice of harms associated with asbestos exposure long before Plaintiff was exposed to asbestos from Defendant’s products.”

(Eberlein Decl.,
Exh. G at p.5.)

Honda satisfies its burden to show that Plaintiff lacks and cannot reasonably obtain evidence to support her demand for punitive damages. Although Plaintiff’s discovery responses state that it was foreseeable based on OSHA standards and known uses of its products that end users of its brakes would handle their products in a manner that released asbestos dust, there are no facts that Honda was on notice that handling the brakes would expose others not directly working with the brakes, such as Ms. Marschik, to an increased risk of asbestos-related disease. In Pfeifer, a manufacturer knew of the exposure risks to end users because it knew removing its gaskets resulted in dust exceeding levels permitted by OSHA. Here, unlike in Pfeifer, there is no evidence that Honda knew end users handling brakes would expose others not directly working with the brakes to hazardous levels of asbestos. There is no evidence in the discovery record that Honda knew of the hazards its products posed to bystanders like Ms. Marschik and continued to sell them without warning. Accordingly, Plaintiff’s discovery responses are devoid of facts supporting the demand for punitive damages.

ii.

Plaintiff’s Burden

Plaintiff

argues that summary adjudication of the demand for punitive damages is not appropriate because Honda knew its products contained asbestos, knew its products created asbestos dust, and knew that working with these products produced asbestos dust. (Opp. at pp.12-13.) As discussed, Plaintiff provides no affirmative evidence that Honda knew the health hazards its products posed to bystanders like Plaintiff who did not work directly with its brakes. Plaintiff directs the court's attention to a service manual which recommended that customers use a wire brush to clean Honda's brake shoes but recommended against breathing in brake lining dust. (Halbany Decl., Exh. I.) Plaintiff also provides an intelligence bulletin issued by the United States Department of Health, Education, and Welfare alerting vehicle manufactures that asbestos posed "a potential health hazard for persons exposed to asbestos during the servicing of motor vehicle brake and clutch assemblies." (Id., Exh. J.) Specifically, the bulletin alerted manufacturers that "workers engaged in the maintenance and repair of automobile and truck brake linings are exposed to potentially hazardous levels of airborne asbestos dust." (Id.) Although these documents evidence Honda's awareness of the health hazards of asbestos brake dust to individuals working directly with its brake products, the documents fail to show that it knew of the risks posed to bystanders such as Plaintiff. Plaintiff thus failed to present affirmative evidence supporting her demand for punitive damages. Accordingly, the motion for summary adjudication of the demand for punitive damages is granted.

IV.

Conclusion

Honda fails to meet its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Ms. Marschik was exposed to an asbestos-containing product for which it is responsible. The burden does not shift to Plaintiff. Accordingly, the motion for summary judgment is denied. Honda's motion for summary adjudication to the cause of action for breach of implied warranty is also denied for the same reasons as the motion for summary judgment.

Honda satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Honda engaged in conduct amounting to malice, fraud, or oppression. Honda also satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that

Honda misrepresented the safety of its product or intentionally concealed the hazards of its products. Plaintiff failed to present affirmative evidence supporting her fraud-based causes of action and her demand for punitive damages. Honda's motions for summary adjudication of the fraud-based causes of action and the demand for punitive damages are granted.

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SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

BOBBETTE MARSCHIK,

Plaintiff,

v.

AMERICAN HONDA MOTORS, INC., et al.

Defendants.

Case No. 25STCV22995

Hearing Date: July 7, 2026

Time: 9:00 a.m.

2

222 [TENTATIVE] ORDER RE:22

2

2222 DEFENDANT MAZDA MOTOR OF AMERICA, INC.'S MOTION FOR
SUMMARY JUDGMENT

22222

I.

Background

On August 5, 2025,
Plaintiff Bobbette Marschik filed her complaint for
personal injury alleging she developed mesothelioma from
direct non-occupational exposure to asbestos
contaminated consumer talc products and from
indirect occupational exposure to asbestos-containing automotive products
through her ex-husband's work at a service station.

On April 23, 2026, Defendant Mazda
Motor of America, Inc. ("Mazda" or "Defendant") moved for summary judgment, arguing
Plaintiff lacks and cannot reasonably obtain evidence that she worked with or
around an asbestos-containing product for which Mazda is responsible. The court
notes that the evidence Mazda submitted with its moving papers is not text
searchable in violation of Cal. Rules of Court, rule 8.74(a). Mazda is warned
to follow the rules of court in future filings.

On June 5, 2026, Plaintiff opposed, arguing that Mazda
failed to shift its burden on summary judgment because Ms. Marschik testified
that Mazda products were used at her worksite.

On June 16, 2026, Mazda replied, arguing that there is no
evidence that Ms. Marschik was exposed to asbestos fibers from any product sold
or supplied by Mazda.

Mazda fails to meet its initial burden to prove that

Plaintiff lacks and cannot reasonably obtain evidence that Ms. Marschik was exposed to an asbestos-containing product for which it is responsible. The burden does not shift to Plaintiff. Accordingly, the motion for summary judgment is denied.

II.

Judicial Notice

Mazda moves for judicial notice of the First Amended Complaint in this action. The request is granted under Evidence Code, § 452, subdivision (d).

III.

Evidentiary Objections

Mazda's Objections

Overruled:

1. Ms.

Marschik's deposition at 79:1-79:1-25 on the grounds that the testimony lacks foundation, is speculative, and is hearsay: "...facts. Misstates prior testimony. Calls – argumentative. Asked and answered. And it calls for expert opinion...Q: You can answer. A: Dozens – dozens adding to over the years, hundreds. Q: Move – move to strike the speculative portions, portions lacking foundation....Q: Okay. Same questions for Mazda. For the Mazda dealer equipment or OEM equipment, did that include brakes? A: Yes. Defense Counsel: Excuse me. Belatedly, this is an objection based on foundation, lack of foundation, speculation and hearsay. Go ahead. By Mr. Sandoval: Did that include clutches? A: Yes."

Mazda objects to an entire page of deposition testimony without specifying which objections pertain to what testimony. Objections to evidence must set forth the specific ground for the objection. (Evid. Code, § 353, subd. (a).) Even if the objection did properly specify which sections of the testimony were objectionable, Mazda failed to explain how the testimony lacks foundation or provide other portions of the deposition transcript showing why Ms. Marschik lacked foundation to testify to certain facts. The objection is overruled.

IV.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (*Id.* at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure” to asbestos-containing products and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (*Rutherford v. Owens-Illinois, Inc.* (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that

exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineaweaver).)

Where a

plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant’s product. (Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

i. Defendant’s Burden:

Factually Devoid

Mazda

moves for summary judgment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which it was responsible. Specifically, Mazda argues that Plaintiff’s deposition testimony that she was exposed to Mazda’s asbestos-containing products is inadmissible. (Motion at pp.4-5 [“Plaintiff’s testimony is not of sufficient quality to allow the trier of fact to find the underlying fact in favor of the party opposing the motion for summary judgment. The questions of her counsel as to the moving party were objected to as lacking foundation, overbroad, speculative, overbroad, and hearsay. By this motion the Court is requested to rule on these objections in passing on the motion. Sustaining even one of these objections is sufficient to nullify plaintiff’s answers to the deposition questions, resulting in an absolute absence of evidence to support plaintiff’s claims as against ‘MAZDA.’”].)

In

opposition, Plaintiff argues that summary judgment is not appropriate because her discovery responses contain specific facts regarding work on Mazda vehicles and the presence of Mazda friction products at Ms. Marschik’s worksites. (Opp.

at p.4 [“...as shown in Plaintiff’s Undisputed Material Facts, Plaintiff’s son, Mark Salerno, identified specific models of Mazda vehicles during the time Plaintiff worked at Salerno’s Servicer, and repair work on these vehicles; identified Mazda as one of the brands of OEM automotive brakes used at Salerno’s, and a Mazda dealership (San Bernardino Mazda) as a supplier; and described Plaintiff’s exposure to asbestos through her proximity to this work at Salerno’s. Not only is this testimony sufficient to show that Mazda has not met its initial burden, it is sufficient to create triable issues of material fact as to all of the matters Mazda chose to place at issue in its Motion.”].)

In reply, Mazda reiterates that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing part sold or supplied by Mazda.

Mazda relies on Plaintiff’s responses to written discovery, Plaintiff’s deposition transcript, and transcripts of the deposition of Ms. Marschik’s son, Mark Salerno, to support its motion. When Mazda asked Plaintiff to state all facts that support her claim that she was exposed to asbestos for which Mazda was responsible, Plaintiff responded to interrogatory number 8 as follows:

“Plaintiff was exposed to asbestos-containing original equipment manufacture (OEM) replacement Mazda parts, including brakes, brake components, clutches, clutch facings, engine gaskets, and exhaust gaskets. Plaintiff is currently unaware whether the Mazda vehicles inspected and repaired in close proximity to her at the services stations and repair shop she owned with her then-husband, Robert Salerno, were new such that the products removed from those vehicles were the original OEM parts installed during the initial manufacture of the Mazda vehicle. Plaintiff would have been exposed principally at the Mobil service station at 604 Pearl Street, Redlands, California, from approximately late 1971 to 1977-1978, and Salerno’s Servicer, 609 Third Street, Redlands California, from late 1977 until June 30, 1987. Plaintiff may also have been exposed at the Mobil service setation at 9th and G streets in San Bernardino, California and the Union Oil service station on Foothill Boulevard, Rialto, California.

...At each service station, Plaintiff had a small office area that opened directly in the repair bay area without an

intervening door. She also would enter the repair area periodically to talk to her husband or to show him paperwork. Robert and other mechanics would perform work at the service stations at all times when Plaintiff was present, which was nearly full-time at Salerno's Servicer, at least five days a week. They did brake, clutch, and engine work, and used compressed air to blow out and clean out the parts they worked on. This work caused the release of respirable asbestos fibers in close proximity to Plaintiff, which she breathed, both during the time that she was in her office nearby doing paperwork and when she periodically entered the repair bays. The parts they stocked in the storage area of the service station and repair shop included OEM Mazda parts."

(Brown
Decl., Exh. A at p. 5.)

Ms.

Marschik testified at her deposition that she came to know which brands' parts were being used at the service stations where she worked because she was responsible for accounts payable and saw brand names on invoices and bills. (Id. at 63:23-64:10 ["Q: And how did you come to learn that these brands were being used, installed, and removed, these brands of equipment?...A: --I--I'm paying, you know, all—all the bills that came in, so there are invoices, and I was in charge of count- -- accounts payable."].) Ms. Marschik also saw brand names on packages in the shop or in storage. (Id. at 64:15-18.) Ms. Marschik could not recall details of any particular brake or clutch job and could not identify which brands were used in those jobs. (Id. at 64:19-25.) Ms. Marschik recalls that her family shops used OEM parts from a number of manufacturers, including Volkswagen, Honda, Nissan, and Mazda, among others. (Id. at 67:9-24.) Of the Mazda OEM parts, Ms. Marschik recalls that the shops used brakes and clutches. (Id. at 78:3-8 ["Q: Okay. Same questions for Mazda. For the Mazda dealer equipment or OEM equipment, did that include brakes? A: Yes...Q: Did that include clutches? A: Yes."].)

Ms.

Marschik's son, Mark Salerno, testified that he did not know if he had ever seen his father remove or install OEM Mazda parts on Mazda vehicles at the Salerno service station ("Salerno"). (Brown Supp. Decl., Exh. A at 253:2-254:18.) Mr. Salerno does not remember observing anyone install an OEM Mazda product in Ms. Marschik's presence. (Id. at 255:3-8.)

Mazda

fails to meet its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which it was responsible. Plaintiff's discovery responses were required to provide a factual basis to show products for which Mazda was responsible were present at her worksite and that these products contained asbestos. (Turley, *supra*, 18 Cal.App.5th at p. 980, Collin, *supra*, 228 Cal.App.4th at p. 593.)

Plaintiff's interrogatory responses establish that she was exposed to asbestos-containing brakes manufactured by Mazda, at the service stations she operated with her then-husband. (Brown Decl., Exh. A at p. 5.) The responses also state that although she did not directly perform auto repair work, Ms. Marschik's offices opened directly into the areas where repair work was being performed, exposing her to dust from the repair work. (*Id.*) Ms. Marschik also testified that she recalled the family shops using Mazda OEM brakes. (Brown Decl., Exh. B at 67:9-24, 78:3-8.) The discovery record supports an inference that Mazda brakes containing asbestos were present at the service stations Ms. Marschik operated with her then-husband. The record also shows Ms. Marschik worked in offices open to where brakes were being replaced. Mazda does not dispute that its brakes contained asbestos at this time. It is reasonable to infer from these facts that Ms. Marschik would have been exposed to asbestos dust if a mechanic worked with a Mazda brake while Ms. Marschik was at the worksite.

Mazda argues that Plaintiff's deposition testimony is hearsay and cannot be used to state that Mazda brakes were present at her worksites. The court overruled Mazda's objections because Mazda failed to explain why Ms. Marschik lacked the foundation to testify that Mazda OEM parts were present at her worksite. Ms. Marschik testified that that she knew the shops used Mazda brakes because she paid bills and invoices for them. (Brown Decl., Exh. B at 64:15-18, 67:9-24, 78:3-8.) This testimony is based on personal knowledge and is not hearsay. This evidence supports an inference that Mazda brakes were present at Ms. Marschik's worksite because it shows the shops purchased the brakes.

Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409 is instructive here. A defendant there, Plant, was the exclusive distributor of insulation products marketed under the Pabco trademark. (Lineaweaver, *supra*, 31 Cal.App.4th at p. 1413.) One plaintiff, Lineaweaver, was a laborer at a refinery. (*Id.*) The evidence was sufficient to support an inference that Lineaweaver was

exposed to Plant's asbestos products because Plant's insulation was definitely at his worksite, Plant was the exclusive distributor in the area of Pabco asbestos insulation products at the relevant time, Lineaweaver worked directly with the asbestos insulation, Lineaweaver worked throughout the refinery which had insulation over two-thirds of its pipes and equipment, Lineaweaver saw boxes of Pabco products at the refinery, Plant was a significant supplier of asbestos products, performing about 50% of the insulation work at the refinery, and another major insulation contractor used Pabco insulation as fill-in supplies, constituting another 10 to 15 percent of the refinery's insulation installed by one particular contractor. (Id., at pp. 1419-1420.)

Although there was no direct evidence that the plaintiff was exposed to Plant's insulation, the significant circumstantial evidence was sufficient to support a reasonable inference of exposure. (Id., at p. 1420.)

Here, like in Lineaweaver, there is no direct evidence that Ms. Marschik was present when mechanics at the service stations where she worked were replacing brakes. However, evidence that Ms. Marschik paid invoices for Mazda brakes and that Ms. Marschik worked in an office open to the auto shop where brake work took place constitutes circumstantial evidence that Ms. Marschik was exposed to Mazda brakes. It is reasonable to infer from the fact that Ms. Marschik paid invoices for Mazda brakes that they were present at the worksite. It is also reasonable to infer from the fact that Ms. Marschik's offices opened directly to the auto shops that she would have been exposed to brake dust if a mechanic worked with Mazda brakes. The discovery responses and deposition testimony therefore contain sufficient circumstantial evidence to support an inference that the Mazda brakes were present at Ms. Marschik's worksites and that these products contained asbestos.

Plaintiff's discovery responses contained sufficient facts to support her claim that she was exposed to asbestos by Mazda brake products. Accordingly, Mazda fails to meet its initial burden on summary judgment. The motion for summary judgment is denied.

V.

Conclusion

Mazda fails to meet its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Ms. Marschik was exposed to an asbestos-containing product for which it is responsible. The

burden does not shift to Plaintiff. Accordingly, the motion for summary judgment is denied.

Plaintiff to give notice.

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SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

BOBBETTE MARSCHIK,

Plaintiff,

v.

AMERICAN HONDA MOTORS, INC., et al.

Defendants.

Case No. 25STCV22995

Hearing Date: July 7, 2026

Time: 9:00 a.m.

2

222 [TENTATIVE] ORDER RE:22

2

2222 DEFENDANT NISSAN NORTH AMERICA'S MOTION FOR SUMMARY
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

22222

I.

Background

On August 5, 2025,
Plaintiff Bobbette Marschik filed her complaint for
personal injury alleging she developed mesothelioma from
direct non-occupational exposure to asbestos
contaminated consumer talc products and from
indirect occupational exposure to asbestos-containing automotive products
through her ex-husband's work at a service station.

On April 22, 2026, Defendant Nissan
North America ("Nissan" or "Defendant") moved for summary judgment or, in the
alternative, summary adjudication, arguing Plaintiff lacks and cannot
reasonably obtain evidence that she worked with or around an
asbestos-containing product for which Nissan is responsible.

On June 5, 2026, Plaintiff opposed, arguing that Nissan
failed to shift its burden on summary judgment because Plaintiff testified that
Nissan products were used at Ms. Marschik's worksite.

On June 15, 2026, Nissan replied, arguing that there is no
evidence that Ms. Marschik was exposed to asbestos fibers from any product
distributed by Nissan.

Nissan fails to meet its initial burden to prove that
Plaintiff lacks and cannot reasonably obtain evidence that Ms. Marschik was
exposed to an asbestos-containing product for which it is responsible. The
burden does not shift to Plaintiff. Accordingly, the motion for summary

judgment is denied. Nissan's motion for summary adjudication to the cause of action for breach of implied warranty is also denied for the same reasons as the motion for summary judgment.

Nissan satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Nissan engaged in conduct amounting to malice, fraud, or oppression. Nissan also satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Nissan misrepresented the safety of its product or intentionally concealed the hazards of its products. Plaintiff failed to present affirmative evidence supporting her fraud-based causes of action and her demand for punitive damages. Nissan's motions for summary adjudication of the fraud-based causes of action and the demand for punitive damages are granted.

II.

Evidentiary Objections

Nissan's Objections

Sustained:

3. Deposition

of Raymond Hughes, corporate representative of Nissan, dated August 22, 2003, 64:20-65:8 in the matter of Sanchez v. Borg Warner, et al., Los Angeles Superior Court case No. BC 290003, attached as Exhibit "K" to the Declaration of Laurel Halbany.

This testimony is inadmissible hearsay. Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiffs fail to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiff offers no evidence or argument to support the admissibility of this deposition and does not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition.

Overruled:

1. Deposition of Bobbette

Marschik, Vol. I, p. 70:13-16; 71:5-21, attached as Exhibit "A" to the Declaration of Laurel Halbany. This testimony is not speculation that lacks foundation or calls for an expert opinion because Ms. Marschik was asked to give an estimate of the number of times Nissan vehicles were serviced with Nissan parts. The testimony does not call for an expert opinion because the question asked for Ms. Marschik's own estimate.

2. Nissan Interrogatory

Responses, Waniss v. American Honda Motor Co., et al, at 14, attached as Exhibit "F" to the Declaration of Laurel Halbany. Nissan objects to its responses to interrogatories in another case on grounds of hearsay. The responses are admissible under Evidence Code section 1220. Nissan's objection is overruled.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (Id. at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or

documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.' " (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show "some threshold exposure" to asbestos-containing products and must further establish to a "reasonable medical probability" that a particular exposure or series of exposures was a "legal cause" of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) "[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant's product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor." (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineweaver).)

Where a

plaintiff's allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence "defendant's product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it..." (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

i. Defendant's Burden:

Factually Devoid

Nissan

moves for summary judgment on the grounds that Plaintiff lacks and cannot

reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which Nissan was responsible. Specifically, Nissan argues that Plaintiff's discovery responses and deposition testimony are devoid of facts establishing that Ms. Marschik was exposed to a Nissan product containing asbestos. (Motion at pp.1, 4-13 ["Plaintiff served factually devoid responses to NNA's 'all facts' discovery and the burden is shifted to plaintiff. Plaintiff's causes of action fail as a matter of law because plaintiff cannot establish the essential element of causation. After comprehensive discovery, plaintiff has produced no evidence - only speculation. Plaintiff's witnesses provide no competent evidence in support of any claims against NNA. Plaintiff identifies no documents that establish the elements of the contested claims."].)

In opposition, Plaintiff argues that summary judgment is not appropriate because her discovery responses contain specific facts regarding work on Datsun vehicles and the presence of Datsun and Nissan friction products at Ms. Marschik's worksites. (Opp. at pp.6-7 ["The evidence regarding Ms. Marschik's exposure to asbestos-containing Nissan or Datsun friction parts is more than sufficient to confirm the existence of triable issues of fact. Plaintiff, her son, and John Jessup all testified about work on Nissans and Datsuns at the service centers owned and operated by Ms. Marschik and her husband. They also recall dust in the air as a result of such work, and it is undisputed that Datsun brakes, clutches and gaskets contained asbestos during the years of such exposure."].)

In reply, Nissan reiterates that it is entitled to summary judgment because Plaintiff has no evidence that she was exposed to any asbestos-containing product distributed by Nissan and that it cannot be held liable for unidentified, third-party replacement parts. (Reply at p.2.)

Nissan relies on Plaintiff's responses to written discovery, Plaintiff's deposition transcript, and transcripts of the depositions of Heidi Salerno, Mark Salerno, and John Jessup to support its motion. When Nissan asked Plaintiff to state all facts that support her cause of action for negligence against Nissan, Plaintiff responded to special interrogatory number 1 in relevant part:

"Plaintiff

Bobbette Marschik was exposed to Defendant NISSAN NORTH AMERICA, INC.'s (herein

"NNA") asbestos-containing products including but not limited to automobiles with asbestos-containing gaskets, friction materials and brakes, brake pads, braking systems as well as other automotive replacement parts, from approximately 1964-1987 working with her ex-husband Robert Salerno at the four gas and automotive repair stations they owned. Ms. Marschik was around others who performed automotive work and maintenance checks on vehicles. Ms. Marschik worked in the offices at the gas stations and Salerno's Service Center, however, the offices opened directly into the shops and service bays. Robert Salerno conducted routine maintenance on all cars, including but not limited to, foreign and domestic cars. Salerno's Service Center performed vehicle work including but not limited to, automotive repairs to brakes, tires, and paint; body work; engine overhauls; inspections; and California brake inspections. At times, Robert Salerno would take used work rags and clothing home for laundering.

Plaintiff

worked with her ex-husband as the accounting clerk every day from 1964-1987 in the gas stations and service station that they owned. Bobbette was exposed to asbestos-containing gaskets, friction materials and brakes, brake pads, braking systems and other automotive repair equipment while working at each of the gas stations and Salerno's Service Center. Bobbette's first husband, Robert Salerno, owned four gas stations during their marriage: Union 76 gas station/service station in San Bernardino, CA, Union 76 gas station /service station in Rialto, CA (Two locations in Rialto, CA), and mobile gas station/service station in Redlands, CA."

(Eberlein

Decl., Exh. G at pp. 2-3.) Plaintiff responded to the special interrogatories directed at her causes of action for strict liability and false representation by referring back to the response to interrogatory number 1. (Id. at pp.12-13.)

Ms. Marschik testified at her

deposition that she came to know which brands' parts were being used at the service stations where she worked because she was responsible for accounts payable and saw brand names on invoices and bills. (Eberlein Decl., Exh. K at 63:23-64:10 ["Q: And how did you come to learn that these brands were being used, installed, and removed, these brands of equipment?...A: --I--I'm paying, you know, all—all the bills that came in, so there are invoices, and I was in charge of count- -- accounts payable."].) Ms. Marschik also saw brand names on packages in the shop or in storage. (Id. at 64:15-18.) Ms. Marschik

recalls that the Salerno service center ("Salerno") used a mixture of after market and original ("OEM") parts. (Id. at 66:12-16.) Ms. Marschik recalls that her family shops used OEM parts from a number of manufacturers, including Volkswagen, Honda, Nissan, and Mazda, among others. (Id. at 67:9-24.) Of the Nissan OEM parts, Ms. Marschik recalls that the shops used brakes. (Id. at 70:13-16 ["Q: For Nissan parts, did that include brake equipment?...A: I believe so."].) Ms. Marschik did not associate Nissan with any brake parts in storage. (Id. at 445:4-8.) Ms. Marschik knew the family shops used Nissan brakes from information she saw on an invoice or work order. (Id. at 446:6-19 ["Q:...As to Nissan, you said that you did not associate that there...So is the only way that you associate any parts with Nissan at this – at various stations, is it because of something that was on an invoice or a work order? A: I don't recall. Q: Can you think of any other way? A: No. Q: Okay. Would the same be true for Honda? You don't have any other way of associating any parts with Honda other than what might have been on an invoice or a work order? A: Correct."].) Ms. Marschik never purchased products used at the shops and never watched anyone performing brake work. (Id. at 439:17-20, 441:14-23.) Ms. Marschik could not describe packages for any parts and never saw any open packages for brakes to be installed on a Nissan. (Id. at 447:5-13.)

Ms.

Marschik's daughter, Heidi Salerno, did not have knowledge of whether Nissan parts were present at the family shops, whether anyone worked on Nissan vehicles or brakes at the shops, or whether Ms. Marschik was present when brake work was performed. (Eberlein Decl., Exh. L at 17:4-7, 22:17-25, 23:8-20, 37:8-11, 39:6-14, 81:14-23, 83:2-22, 105:17-23, 106:2-108:4.) Ms. Marschik's son, Mark Salerno, testified that he ordered parts for the family shops from a mix of dealerships and shops selling aftermarket parts. (Eberlein Decl., Exh. M at 27:2-19.) Mr. Salerno ordered OEM parts for Datsun vehicles from a Toyota dealer on Redlands Boulevard. (Id. at 29:8-12.) A former employee of Ms. Marschik's family shops, John Jessup, testified that he has no recollection of seeing brake work done on Datsun vehicles. (Eberlein Decl., Exh. N at 78:25-79:11.) Mr. Jessup had no information that Ms. Marschik was present when any work was done on Datsun vehicles at Salerno or that Ms. Marschik purchased any Datsun parts. (Id. 80:18-81:24.)

Nissan

fails to meet its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing

product for which it was responsible. Plaintiff's discovery responses were required to provide a factual basis to show products for which Nissan was responsible were present at her worksite and that these products contained asbestos. (Turley, supra, 18 Cal.App.5th at p. 980, Collin, supra, 228 Cal.App.4th at p. 593.)

The discovery record establishes that Ms. Marschik paid invoices for Nissan brakes and recalls the shops using Nissan OEM brakes. (Ex. K at 67:9-24, 70:13-16 78:3-8, 446:6-19.) Ms. Marschik knew the family shops used Nissan brakes because she saw brand names and parts on the invoices and work orders she processed. (Id. at 446:6-19.) These facts support an inference that Nissan brakes were present at Ms. Marschik's worksites because Ms. Marschik paid invoices for the brakes used at the service stations. The record also establishes the Ms. Marschik worked in offices open to where brakes were being replaced. Nissan fails to dispute that the Honda brakes contained asbestos at this time. Nissan fails to dispute that its brakes contained asbestos at this time. Even if Nissan did dispute the brakes' asbestos content, Plaintiffs provide Nissan's prior interrogatory responses wherein Nissan admits it distributed asbestos-containing "brake shoe lining, disc brake pads, and manual transmission clutch disc" components used in "automobiles/light duty trucks" beginning in 1960. (Halbany Decl., Exh. F at pp.12-14.) It is reasonable to infer from these facts that Nissan's asbestos-containing brakes were present at the worksites and that Ms. Marschik would have been exposed to asbestos dust if a mechanic worked with a Nissan brake in the shop.

Nissan argues Plaintiff relies on speculation based on hearsay to state that Nissan brakes were present at her worksites. Nissan also argues that product identification may not be based on hearsay. In support of this argument, Nissan cites DiCola v. White Brothers Performance Products, Inc. (2008) 158 Cal. App. 4th 666 for the proposition that product identification cannot be based on markings on boxes or packaging. Ms. Marschik stated in her deposition that she could not identify any packaging for Nissan parts. (Eberlein Decl., Exh. K at 445:4-8, 448:15-19.) Rather, Ms. Marschik testified that that she knew the shops used Nissan brakes because she paid bills and invoices for them. (Id. at 64:15-18, 446:6-19.) This testimony is based on personal knowledge and is not hearsay. This evidence supports an inference that Nissan brakes were present at Ms. Marschik's worksite because it shows the shops purchased the brakes.

Lineaweaver

v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409 is instructive here. A defendant there, Plant, was the exclusive distributor of insulation products marketed under the Pabco trademark. (Lineaweaver, supra, 31 Cal.App.4th at p. 1413.) One plaintiff, Lineaweaver, was a laborer at a refinery. (Id.) The evidence was sufficient to support an inference that Lineaweaver was exposed to Plant's asbestos products because Plant's insulation was definitely at his worksite, Plant was the exclusive distributor in the area of Pabco asbestos insulation products at the relevant time, Lineaweaver worked directly with the asbestos insulation, Lineaweaver worked throughout the refinery which had insulation over two-thirds of its pipes and equipment, Lineaweaver saw boxes of Pabco products at the refinery, Plant was a significant supplier of asbestos products, performing about 50% of the insulation work at the refinery, and another major insulation contractor used Pabco insulation as fill-in supplies, constituting another 10 to 15 percent of the refinery's insulation installed by one particular contractor. (Id., at pp. 1419-1420.) Although there was no direct evidence that the plaintiff was exposed to Plant's insulation, the significant circumstantial evidence was sufficient to support a reasonable inference of exposure. (Id., at p. 1420.)

Here, like in Lineaweaver, there is no direct evidence that Ms. Marschik was present when mechanics at the service stations where she worked were replacing brakes. However, evidence that Ms. Marschik paid invoices for Nissan brakes, that Mr. Salerno ordered OEM parts from a dealer for Datsun vehicles, and that Ms. Marschik worked in an office open to the auto shop where brake work took place constitutes circumstantial evidence that Ms. Marschik was exposed to Nissan brakes. It is reasonable to infer from the fact that the service centers bought OEM parts for Datsun vehicles and the fact that Ms. Marschik paid invoices for Nissan brakes that Nissan brakes were present at the worksite. It is also reasonable to infer from the fact that Ms. Marschik's offices opened directly to the auto shops that she would have been exposed to brake dust if a mechanic worked with Nissan brakes. The discovery responses and deposition testimony therefore contain sufficient circumstantial evidence to support an inference that the Nissan brakes were present at Ms. Marschik's worksites and that these products contained asbestos.

Plaintiff's discovery responses contained sufficient facts to support her claim that she was exposed to asbestos by Nissan brake products. Accordingly, Nissan fails to meet its initial burden on summary judgment. The motion for summary judgment is denied.

C.

Fraud

Nissan

moves for summary adjudication of the fraud-based causes of action for (1) false representation and (2) intentional tort/intentional failure to warn/concealment (hereinafter “fraudulent concealment”) on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Nissan misrepresented the safety of its products or that it had a duty to disclose the hazards of its products to her.

False

representation under Restatement of Torts section 402B establishes “liability for injuries caused by justifiable reliance on false advertising.” (Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1750.) Under this section “ ‘[o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.’ [Citation.]” (Id. at pp. 1750-1751.) “The rule ‘is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.’ [Citation.]” (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the “‘reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.’ [Citation.]” (Westlye, supra, 17 Cal.App.4th at p. 1751.)

The elements

of a cause of action for fraudulent concealment or fraud by non-disclosure are: “(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the

fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud by non-disclosure or concealment: " (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]' " (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, "As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties." (Id. at p. 337.) Unlike products liability, where there is a "general principle that a manufacturer has a duty to warn consumers of a product's hazards and faults," a duty to disclose material facts arises in the fraud context "only where there is already a sufficient relationship or transaction between the parties." (Bigler-Engler, supra, 7 Cal.App.5th at p.312.)

i.

Defendant's Burden: Factually Devoid

Nissan

moves for summary adjudication of the causes of action for false representation and fraudulent concealment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Nissan made a false representation to her or that Nissan concealed the safety of its products. (Motion at pp. 13, 16.)

In

opposition, Plaintiff argues that "Nissan's actions in failing to disclose the deadly hazards created by its products while knowing of such hazards is the type of nondisclosure that constitutes false representation. Nissan is not entitled to summary adjudication of this issue." (Opp. at p.9.)

When

Nissan asked Plaintiff to state all facts supporting her causes of action for false representation and fraudulent concealment, Plaintiff responded by referring to her response to interrogatory number 1, which states in relevant part:

“Despite its

knowledge of the hazards of asbestos, NNA made no effort to provide this information and did not provide any of this information to end users and consumers, including Plaintiff Bobbette Marschik and her co-workers, and others similarly situated, performing such work, despite NNA's superior knowledge and awareness of the asbestos hazards created during the normal use, installation, repair, and removal of its own products. Instead, Defendant NNA, through its officers, agents, employees, directors and various divisions, acting in concert with its above co-conspirators then, and thereafter continued to, withhold and in fact suppress such information from end users and consumers, including Plaintiff Bobbette Marschik, instead warranting, advertising and merchandising the safety of NNA's asbestos-containing products, which misrepresentations and warranties of safety merchantability were relied upon by end users and consumers, including Plaintiff, and others similarly situated to her harm and detriment.

Moreover, no open

and notorious warnings for all foreseeable end users of the above listed Defendant's asbestos-containing products (such as a skull-and-crossbones) were included on their respective products or packaging in order to warn users of the hazards and dangers of such products. As a result, Plaintiff Bobbette Marschik took no precautions to protect herself from the asbestos- containing dust, debris, fiber and particulate from NNA's asbestos-containing products.

As a result of

Defendant NNA's actions, omissions, and negligence, Plaintiff Bobbette Marschik developed an asbestos-related disease, to wit: mesothelioma. Defendant NNA knew, or should have known, that Plaintiff Bobbette Marschik would be at such risk for developing such diseases. Defendant NNA's conduct subjected Plaintiff Bobbette Marschik and others like her to cruel and unjust hardships in conscious disregard for the rights and safety of such persons. Defendant NNA knew, or should have known, of the likelihood of such consequences and consciously disregarded such likely outcomes. Defendant NNA should have avoided such dangerous consequences but willfully and deliberately failed to do so. NNA acted with malice, fraud and oppression in its conduct with regard to its

continued manufacture, distribution, marketing, labeling, sale and/or supply of raw asbestos or asbestos-containing products. Despite Defendant's knowledge of the extraordinary health hazards associated with asbestos exposure, NNA continued to manufacture, distribute, market, label, sell and/or supply such products, without warnings or proper handling instructions, for decades after such knowledge was first known by it."

(Eberlein
Decl., Exh. G at p. 8.)

Ms.

Marschik stipulated at her deposition that she would not provide testimony regarding corporate knowledge for the defendants in this case. (Eberlein Decl., Exh. K at 414:1-21.) Ms. Marschik also testified that she had never spoken to anyone from Nissan. (Id. 451:24-452:1.)

Nissan satisfies its initial burden to prove that Ms.

Marschik lacks and cannot reasonably obtain evidence to support her fraud-based causes of action. For the false representation cause of action, Ms. Marschik's deposition testimony establishes that she had never communicated with anyone from Nissan. (Eberlein
Decl., Exh. K at 451:24-452:1.) This

evidence establishes that Nissan could not have made misrepresentations about its products' safety to Ms. Marschik because she admits she had no communication with Nissan. Although Ms. Marschik's interrogatory responses state Nissan knew of the dangers of asbestos in its products and misrepresented the safety of their products, Ms. Marschik's deposition testimony establishes she had never received these alleged misrepresentations.

As for the cause of action for fraudulent concealment, the interrogatory responses fail to state the factual basis for Plaintiff's contention that Nissan concealed the hazards of its products or that Ms. Marschik relied on the alleged concealment. Ms. Marschik also stipulated that she would not provide testimony regarding corporate knowledge and thus has no knowledge of whether Nissan knew of the hazards associated with its products and concealed them.

Plaintiff's discovery responses therefore give rise to an inference that Plaintiff lacks and cannot reasonably obtain evidence to support her fraud-based causes of action. Accordingly, the burden shifts to Plaintiff.

ii.

Plaintiff's Burden

Plaintiff argues in opposition that

Nissan is not entitled to summary adjudication of the false representation and intentional tort claims because Nissan failed to disclose the deadly hazards of its products. Plaintiff presents no argument or affirmative evidence establishing that Ms. Marschik communicated with anyone from Nissan. As discussed, the discovery record establishes that Nissan never communicated with Ms. Marschik. Accordingly, Plaintiff fails to meet her burden on summary adjudication as to the cause of action for false representation.

Plaintiff relies on Nissan's

Material Safety Data Sheets from 1990 and the prior deposition testimony of Nissan's corporate representative, Raymond Hughes, to show that Nissan knew of the hazards of its products and failed to warn its customers. (RUMF 166; Halbany Decl., Exhs. K, H.) Plaintiff also presents a Japan Times article stating Japanese car manufacturers continued to manufacture cars with components containing asbestos by 2005. (Id., Exh. J.) The court sustained the objection to Plaintiff's Exhibit K. Nissan objected to Plaintiff's Exhibits H and J in the reply memorandum on the grounds that they are hearsay. These objections are not in proper form^[1] and are thus overruled. However, neither the safety data sheet nor the Japan Times article state that Nissan concealed the dangers of the asbestos-containing components from their customers. The safety data sheet contains a sample warning label placed on its asbestos-containing products. (Id., Exh. H.) The Japan Times article at most shows that Japanese manufacturers, including Nissan, continued using asbestos-containing components in their cars. (Id., Exh. J.) Plaintiff's remaining evidence, Nissan correspondence from 1986 about the EPA's proposed rulemaking and copies of Nissan web pages depicting Datsun vehicles, likewise contain no evidence showing whether Nissan concealed the hazards of its products from its customers. (Id., Exhs. G, M, N.) Plaintiff thus fails to present affirmative evidence supporting her claim for fraudulent concealment against Nissan.

Accordingly, Plaintiff fails to

present affirmative evidence supporting her fraud-based causes of action against Nissan. The motions for summary adjudication for the causes of action for false representation and fraudulent concealment are granted.

D.

Breach of Express and Implied Warranty

Nissan moves for summary

adjudication of the cause of action for breach of implied warranty on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Nissan breached any warranty to Plaintiff. (Motion at p. 18.)

“Vertical privity is a

prerequisite in California for recovery on a theory of breach of the implied warranties of fitness and merchantability.” (United States Roofing, Inc. v. Credit Alliance Corp. (1991) 228 Cal.App.3d 1431, 1441, internal citations omitted.) However, it is well-settled that “employee[s] should be considered a member of the industrial ‘family’ of the employer—whether corporate or private— and to thus stand in such privity to the manufacturer as to permit the employee[s] to be covered by warranties made to the purchaser-employer.” (Peterson v. Lamb Rubber Co. (1960) 54 Cal.2d 339, 347.)

Here, Plaintiff’s

interrogatory responses state that “NNA purposefully misrepresented the safety of their foregoing asbestos products, instead intentionally and fraudulently warranting them as safe and merchantable, for their intended use.” (Eberlein Decl., Exh. G at p.8.) Nissan’s motion for summary judgment was denied because it failed to meet its burden that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which Nissan was responsible. There is no dispute that Ms. Marschik was an employee of the service centers she operated with her then-husband. As an employee of the service centers that purchased the products at issue, Ms. Marschik stands in privity with Nissan and is covered by the warranties made to those service centers. Because the motion for summary judgment was denied, triable issues of material fact remain over whether Nissan breached any implied or express warranties made to the service centers regarding the safety of its products. The motion for summary adjudication of the cause of action for breach of implied and express warranty is denied.

E.

Punitive Damages

When a motion for summary

adjudication targets a request for punitive damages, a higher standard of proof is at play. “Although the clear and convincing evidentiary standard is a stringent one, ‘it does not impose on a plaintiff the obligation to “prove” a case for punitive damages at summary judgment [or summary adjudication.]’

[Citations.] Even so, ‘where the plaintiff’s ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.’ [Citation.]” (Butte Fire Cases (2018)

24 Cal.App.5th 1150, 11581159.) For a corporate defendant, the

oppression, fraud or malice “must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd.

(b).) That requirement can be satisfied “ ‘if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in “willful and conscious disregard of the rights or safety of others.” ’ [Citation.]” (Morgan v. J-M Manufacturing

Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 (“Morgan”).) A

plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’

[Citation.]” (Id. at p. 1091.)

“ ‘[I]ntentionally marketing a defective product

knowing that it might cause injury and death is ‘highly reprehensible.’

[Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205

Cal.App.4th 68, 85.) Punitive damages may be available when a defendant

knows the dangers of asbestos, took action to protect its own

employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013)

220 Cal.Ap.4th 1270, 1300.) Such evidence “was sufficient to show malice,

that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id. at pp. 1300-1301.)

i.

Defendant’s Burden: Factually Devoid

Nissan moves for summary

adjudication of the demand for punitive damages on the grounds that Plaintiff lacks and cannot reasonably obtain evidence establishing by clear and convincing evidence that Nissan acted with malice, fraud, or oppression. (Motion at pp. 18-20.)

In opposition, Plaintiff, citing *Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270 (“Pfeifer”), argues that Nissan “knew that its products contained asbestos, and knew that asbestos dust was created from working with them. Yet it continued to sell products without any warning. This was a conscious disregard of health and safety and, therefore, sufficient to raise triable issues as to culpability for punitive damages. Nissan has failed to meet its burden in showing that summary adjudication of Plaintiff’s punitive damages claim is warranted and Plaintiff has shown that substantial evidence exists supporting such claim.” (Opp. at pp.12-13.)

In *Pfeifer*, evidence was sufficient to establish by clear and convincing evidence that a manufacturer of gaskets, JCI, knew that asbestos was hazardous by the 1970s when the Occupational Safety and Health Administration (“OSHA”) promulgated regulations requiring manufacturers of asbestos-based products to monitor concentrations of asbestos fibers in the air in its factories. (*Pfeifer*, supra, 220 Cal.App.4th at p.1300.) JCI also prepared safety data sheets for its sheet gaskets warning its employees that exposure to asbestos could cause asbestosis and cancer. (*Id.*) OSHA regulations also required manufacturers to place warning labels on products unless the fibers had been modified by a bonding agent that limited the asbestos released during foreseeable use of the gaskets. (*Id.*) JCI knew asbestos dust was released when its users replaced fragmented old. (*Id.*) Additionally, JCI knew products did not fully encapsulate the asbestos fibers and that removal methods resulted in concentrations of asbestos fibers that greatly exceeded ordinary background levels. (*Id.*) The evidence supported a finding that JCI acted with a conscious disregard for the safety of others because it understood that asbestos dust endangered workers and continued to sell a product that generated considerable asbestos dust without warnings. (*Id.* at pp.1300-1301.)

Here, Plaintiff’s interrogatory responses state in relevant part:

“It was known and

foreseeable to NNA that the above-identified asbestos-containing products were used, installed, removed, handled and otherwise disturbed in the manner described above when the above- identified asbestos-containing products left NNA's possession, particularly given its long-standing relationship and knowledge of use of these products; yet, NNA provided no warnings to Plaintiff Bobbette Marschik or any other end user and bystander about the dangers of the above-identified asbestos-containing products. NNA had a duty to warn users of its products of the dangers of asbestos materials, but failed to do so. As a result, asbestos materials used, installed, removed, handled and otherwise disturbed in the manner described above without any precautions being taken and Plaintiff Bobbette Marschik suffered heavy exposure to asbestos. Such exposure to asbestos contributed to Plaintiff Bobbette Marschik developing mesothelioma."

(Eberlein Decl.,
Exh. G at p.7.)

Additionally,
Plaintiff's responses to requests for production direct Nissan to OSHA standards relating to asbestos to show that Nissan was on notice of the hazards of asbestos in its products:

"Plaintiff also
identifies OSHA standards relating to asbestos, found at Code of Federal Regulations, Title 29, Chapter 17, Section 1910, et seq.; and Title 8, Section 5208 of the California OSHA regulations pertaining to asbestos exposure. Defendant was subject to these regulations, which thus but Defendant on constructive if not actual notice of harms associated with asbestos exposure long before Plaintiff was exposed to asbestos from Defendant's products."

(Eberlein Decl.,
Exh. G at p.5.)

Nissan satisfies its burden to show
that Plaintiff lacks and cannot reasonably obtain evidence to support her demand for punitive damages. Although Plaintiff's discovery responses state that it was foreseeable based on OSHA standards and known uses of its products that end users of its brakes would handle their products in a manner that released asbestos dust, there are no facts that Nissan was on notice that handling the brakes would expose others not directly working with the brakes, such as Ms. Marschik, to asbestos dust. In Pfeifer, a manufacturer knew

of the exposure risks to end users because it knew removing its gaskets resulted in dust exceeding levels permitted by OSHA. Here, unlike in Pfeifer, there is no evidence that Nissan knew end users handling brakes would expose others not directly working with the brakes to hazardous levels of asbestos. There is no evidence in the discovery record that Nissan knew of the hazards its products posed to bystanders like Ms. Marschik and continued to sell them without warning. Accordingly, Plaintiff's discovery responses are devoid of facts supporting the demand for punitive damages.

ii.

Plaintiff's Burden

Plaintiff argues

that summary adjudication of the demand for punitive damages is not appropriate because Nissan knew its products contained asbestos, knew its products created asbestos dust, and knew that working with these products produced asbestos dust. (Opp. at pp.12-13.)

As discussed,

Plaintiff provides a safety data sheet, a Japan Times article, and the former testimony of a corporate representative to show that Nissan knew of the hazards of its products and failed to place warnings on its products. The court sustained Nissan's objections to the former testimony. The safety data sheet and the Japan Times article fail to show that Nissan knew of the health hazards posed by its products.

Plaintiff also

provides the "Asbestos Containing Parts Survey Results" from 1991 to show that Nissan tests indicated that samples showed that "potential for elevated fiber counts exist under extreme conditions." (Halbany Decl., Exh. I at p.3.) The quoted portion pertains to air monitoring results showing that samples taken from Nissan's Parts Distribution Centers in Compton and Costa Mesa in 1991 exceeded 0.1 f/cc. (Id. at p.1.) The samples were taken in a small, sealed area from an employee handling parts constantly in a rough manner for the entire sampling period. (Id., at p.3.) The portion of the survey results Plaintiff quoted in the opposition thus concerns testing undertaken in extreme conditions in a small, enclosed space. These results fail to show that Nissan knew of the risks to bystanders near individuals directly handling asbestos-containing components under normal conditions.

Plaintiff

fails to present affirmative evidence supporting her demand for punitive damages. Accordingly, the motion for summary adjudication of the demand for punitive damages is granted.

IV.

Conclusion

Nissan fails to meet its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Ms. Marschik was exposed to an asbestos-containing product for which it is responsible. The burden does not shift to Plaintiff. Accordingly, the motion for summary judgment is denied. Nissan's motion for summary adjudication to the cause of action for breach of implied warranty is also denied for the same reasons as the motion for summary judgment.

Nissan satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Nissan engaged in conduct amounting to malice, fraud, or oppression. Nissan also satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Nissan misrepresented the safety of its product or intentionally concealed the hazards of its products. Plaintiff failed to present affirmative evidence supporting her fraud-based causes of action and her demand for punitive damages. Nissan's motions for summary adjudication of the fraud-based causes of action and the demand for punitive damages are granted.

[1] Nissan's objections to Plaintiff's

Exhibit K should have been made in the document served and filed separately from the other papers as required under California Rules of Court, rule 3.1354(b).

.....

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

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BOBBETTE MARSCHIK,٤٤

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Plaintiff,٤٤

V.٤٤

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AMERICAN HONDA MOTORS, INC., et al.

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Defendants.٤٤٤

٤٤٤ Case No.٤25STCV22995

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٤٤٤ Hearing Date: July 7, 2026٤

٤٤٤ Time:٤٤٤٤٤٤٤٤٤٤٤٤٤٤٤٤ 9:00 a.m.٤

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٤٤٤ [TENTATIVE] ORDER RE:٤٤

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٤٤٤٤ DEFENDANT VOLKSWAGEN GROUP OF AMERICA, INC.'S MOTION
FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

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I.

Background

On August 5, 2025,
Plaintiff Bobbette Marschik filed her complaint for
personal injury alleging she developed mesothelioma from
direct non-occupational exposure to asbestos
contaminated consumer talc products and from
indirect occupational exposure to asbestos-containing automotive products
through her ex-husband's work at a service station.

On April 23, 2026, Defendant Volkswagen
Group of America, Inc. ("Volkswagen" or "Defendant") moved for summary judgment
or, in the alternative, summary adjudication, arguing Plaintiff lacks and
cannot reasonably obtain evidence that she worked with or around an
asbestos-containing product for which Volkswagen is responsible.

On May 14, 2026, Plaintiff opposed, arguing that Volkswagen
failed to shift its burden on summary judgment because Ms. Marschik testified
that Volkswagen products were used at her worksite.

On June 15, 2026, Volkswagen replied, arguing that there is
no evidence that Ms. Marschik was exposed to asbestos fibers from any product
distributed by Volkswagen.

Volkswagen meets its initial burden to prove that Plaintiff
lacks and cannot reasonably obtain evidence that Ms. Marschik was exposed to an
asbestos-containing product for which it is responsible. Plaintiff meets her
burden on summary judgment to present affirmative evidence supporting her
claims against Volkswagen. Accordingly, the motion for summary judgment is
denied. Volkswagen's motion for summary adjudication to the cause of action for
breach of implied warranty is also denied for the same reasons as the motion
for summary judgment.

Volkswagen satisfies its initial burden to prove that
Plaintiff lacks and cannot reasonably obtain evidence that Volkswagen engaged
in conduct amounting to malice, fraud, or oppression. Volkswagen also satisfies
its initial burden to prove that Plaintiff lacks and cannot reasonably obtain
evidence that Volkswagen misrepresented the safety of its product or
intentionally concealed the hazards of its products. Plaintiff failed to
present affirmative evidence supporting her fraud-based causes of action and
her demand for punitive damages. Volkswagen's motions for summary adjudication
of the fraud-based causes of action and the demand for punitive damages are

granted.

II.

Evidentiary Objections

Volkswagen's Objections

Deposition transcript of Mark Salerno

1. Halbany Decl., Exh. B at 26:19

– 27:19

Q: And when you first started at the service center, were the parts stores that you are ordering from the same ones that your family had relied on at the Mobil in Redlands, or did that change? A: No. . . . it was still the same. Q: And what were those parts stores? A: There was 9 to - - I think it was "Nine to" - - I think it was Nine-Eleven. Dealerships. There was Inland Ford. I believe it was - - the name's changed several times. It may have been - - Jim Glaze was the Chrysler. There was a Dodge dealership down the street from us, or a Chrysler store that's no longer there. I don't know if it was Runkel or something to that effect. Then different dealerships in San Bernardino. I mean, there was a, there was a larger warehouse-style parts department in San Bernardino on Waterman that's no longer there. A lot of, a lot of the – there was a parts department on Colton Avenue. But all those are longer in existence. Q: So it sounds like it was a mix of parts shops that sold after market parts and dealerships? A: Yes.

Volkswagen objects on the grounds that the testimony lacks foundation, Mr. Salerno lacks personal knowledge, and that the testimony is speculative. These objections are without merit because Mr. Salerno has personal knowledge of where he and his father ordered parts and what vehicles were serviced at the family service centers. The objection is overruled.

2-5: Overruled for the same reasons as objection number 1.

Not relied upon

6-7.

Deposition transcript of John Jessup

Not relied upon: 1-2.

Deposition transcript of Bobbette Marschik

3. Halbany Decl., Exh. E at 55:23-56:22,
57:1-6, 57:15-21

This deposition testimony pertains to the condition of the air around her. Volkswagen's objections for lack of foundation, lack of personal knowledge, and speculation are without merit because Ms. Marschik has personal knowledge of the events described in her deposition testimony. The objection is overruled.

4-5: Overruled for the same reasons as objection number 3.

Not relied upon: 1, 2, 6.

Exhibits H, I, L:

Volkswagen objects to these exhibits on relevance grounds because they are discovery responses Volkswagen served in other cases. The objection is overruled because the responses contain evidence relevant to whether Volkswagen's parts contained asbestos. The objection is overruled.

Exhibit J:

Volkswagen objects to the prior deposition taken of Volkswagen's corporate representative in another matter. This testimony is inadmissible hearsay. Plaintiff fails to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiffs fail to rebut the general rule against the admissibility of former deposition testimony. (*Berroteran v. Superior Court* (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiff offers no evidence or argument to support the admissibility of this deposition and does not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the *Berroteran* factors bear in favor of the admissibility of the deposition. The objection is

sustained.

Not relied upon:

Volkswagen's objection to Halbany Decl., Exh. K.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure” to asbestos-containing products and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury,

i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineweaver).)

Where a plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant’s product. (Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

i. Defendant’s Burden:

Factually Devoid

Volkswagen

moves for summary judgment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which it was responsible. Specifically, Volkswagen argues that Plaintiff’s discovery responses and deposition testimony are devoid of facts establishing that Ms. Marschik was exposed to a Volkswagen product containing asbestos. (Motion at p.11 [“Because neither Plaintiff nor any witness can identify any VWGoA part or product—let alone any factory authorized OEM components—she cannot establish that it is more likely than not that she was exposed to a VWGoA product as opposed to some unidentified aftermarket product. As such, VWGoA has successfully shifted the burden to Plaintiff to prove exposure and causation; however, for the same reasons set forth above, she is wholly unable to do so.”].)

In

opposition, Plaintiff argues that summary judgment is not appropriate because her discovery responses contain specific facts regarding work on Volkswagen vehicles and the presence of Volkswagen friction products at Ms. Marschik's worksites. (Opp. at pp.8-9 ["VW has completely failed to meet its initial burden. VW fails to show that Plaintiff's detailed, specific responses to its contention interrogatories are "factually devoid", and ignores Plaintiff's identification of OEM Volkswagen brand parts, Volkswagen vehicles, and the times, dates, locations, and circumstances under which she alleges exposure to asbestos-containing VW products. VW's claim that the responses are 'speculative', and its complaint that documents may be 'better' evidence than a witness's recollection are, in effect, a complaint about the weight of the evidence; that is, there are triable issues of material fact."].)

In reply, Volkswagen reiterates that it is entitled to summary judgment because she cannot identify the Volkswagen product that exposed her to asbestos. (Reply at p.5. ["Plaintiff attempts to skip the necessary first step—product identification—and proceed directly to exposure and causation. But without admissible evidence identifying a specific asbestos-containing Volkswagen product to which Plaintiff was exposed, Plaintiff's claims rest on nothing more than conjecture. Accordingly, the motion should be granted in VWGoA's favor.].)

Volkswagen

relies on Plaintiff's responses to written discovery, Plaintiff's deposition transcript, and transcripts of the depositions of Heidi Salerno, Mark Salerno, and John Jessup to support its motion. When Volkswagen asked Plaintiff to state all facts that support her allegation that she was exposed to asbestos from a product for which Volkswagen was liable, Plaintiff responded to special interrogatory number 1 in relevant part:

"Plaintiff

Bobbette Marschik was exposed to asbestos for which Defendant is responsible during her work at the service and auto repair stations she operated with her then-husband, Robert F. Salerno. Plaintiff would have been exposed principally at the Mobil service station at 604 Pearl Street, Redlands, California from approximately late 1971 to 1977-1978, and at Salerno's Servicenter, 609 Third Street, Redlands, California, from late 1977 until June 30, 1987. Plaintiff may also have been exposed at the Mobil service station at 9th and G streets in San Bernardino, California and the Union Oil service station on Foothill Boulevard, Rialto, California. At these service stations, Plaintiff

had a small office area that opened directly into the repair bay area without an intervening door. She also would enter the repair area periodically to talk to her husband or to show him paperwork. Robert and other mechanics would perform work at the service stations at all times when Plaintiff was present, which was nearly full-time at Salerno's Servicenter, at least five days a week. Mr. Salerno and other mechanics did brake, clutch, and engine work, and used compressed air to blow out and clean out the parts they worked on, including brakes. At the Mobil station and Salerno's Servicenter, Mr. Salerno and other mechanics worked on all makes of cars then available, including Volkswagen, and used replacement parts including OEM brake, clutch, and gaskets.

...New

Volkswagen cars had asbestos-containing brakes until at least 1986 and 1988, asbestos-containing clutches until 1991, and asbestos-containing gaskets until 1993. The ordinary and expected inspection, repair, and maintenance of Volkswagen cars, and the unboxing, handling, removal, scraping, sanding, installation, and adjusting of Volkswagen brand brakes, clutches, and engine gaskets during automotive maintenance and repair work caused the release of asbestos fibers. Volkswagen OEM and replacement parts contained asbestos as a component of brake shoes, brake pads, clutch plates, gaskets and transmission bands beginning in 1955. Thus, throughout the time that Mr. Salerno was performing inspection, repairs, and parts replacements on vehicles including Volkswagens at the family's service stations and Salerno's Servicenter, every Volkswagen vehicle and every Volkswagen part was asbestos-containing. VWGA never decided to phase out asbestos, switch to asbestos-free vehicle parts, or cease selling vehicles with asbestos-containing OEM parts."

(Shawtina

Lewis Decl., Exh. D at p.3.)

Ms.

Marschik testified at her deposition that she did not know the maintenance history or mileage of any vehicles that came into her shops for work. (Lewis Decl., Exh. H at 386:4-10.) Ms. Marschik did not see any markings on the parts mechanics took off vehicles in the service stations. (Id. at 388:9-10.)

Ms. Marschik did not know whether the parts being taken off these vehicles were original OEM parts. (Id. at 388:19-389:12.) Ms. Marschik could not describe packaging she associated with Volkswagen that was present at any of the service stations she operated with her husband. (Id. at 454:22-455:1.)

Ms.

Marschik's son, Mark Salerno recalled that the service stations worked on a lot of Volkswagen vehicles, he does not remember removing original Volkswagen equipment from any vehicles. (Lewis Decl., Exh. I at 261:19-262:2.) Mr. Salerno has no personal knowledge that Ms. Marschik was present during the installation of an OEM Volkswagen brake, gasket, or clutch. (Id. at 262:24-264:4.) Ms. Marschik's daughter, Heidi Salerno, did not have knowledge of whether Volkswagen parts were present at the family shops, whether she had ever picked up Volkswagen parts, whether anyone worked on Volkswagen vehicles or brakes at the shops, or whether Ms. Marschik was present when brake work was performed. (Lewis Decl., Exh. J at 82:12-17, 95:25-96:7, 171:16-172:3, 172:6-13, 173:2-5, 173:13-21.) A former employee of Ms. Marschik's family shops, John Jessup, testified that he has no recollection of the service history of any vehicles serviced at the family service stations. (Lewis Decl., Exh. K at 36:5-12.) Mr. Jessup did not order parts and did not pay bills for the service stations. (Id. at 42:3-11.) Although Mr. Jessup knew that Volkswagen parts generally came from a dealer called Jack Feely, he did not know specifically what parts were bought there. (Id. at 44:20-45:9.)

Volkswagen

meets its initial burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to asbestos by an asbestos-containing product for which it was responsible. Plaintiff's discovery responses were required to provide a factual basis to show products for which Volkswagen was responsible were present at her worksite and that these products contained asbestos. (Turley, supra, 18 Cal.App.5th at p. 980, Collin, supra, 228 Cal.App.4th at p. 593.)

Plaintiff's interrogatory responses

state that she was exposed to asbestos-containing brakes manufactured by Volkswagen at the service stations she operated with her then-husband. (Lweis Decl., Exh. D at p.3.) The responses also state that although she did not directly perform auto repair work, Ms. Marschik's offices opened directly into the areas where repair work was being performed, exposing her to dust from the repair work. (Id.) However, the responses fail to state the factual basis for Plaintiff's assertion that Volkswagen's asbestos-containing parts were present at the service stations. Plaintiff testified at her deposition that she could not recall seeing markings on the parts coming off or being installed on the vehicles at the service stations, packaging for any Volkswagen parts, automotive parts she associated with Volkswagen, or brake work being performed on a Volkswagen with a Volkswagen part. (Id., Exh. H at 388:9-10, 388:19-389:12,

454:22-455:1, 455:2-12, 455:13-20.) Ms. Marschik also had no information about where the service stations obtained their parts. (Id. at 262:24-264:4.)

Mr. Salerno, Ms. Salerno, and Mr. Jessup likewise had no information about whether Volkswagen parts were removed, installed, or purchased for the service stations. (Lewis Decl., Exh. I at 261:19-262:2, 262:24-264:4; Exh. J at 82:12-17, 95:25-96:7, 171:16-172:3, 172:6-13, 173:2-5, 173:13-21, Exh. K at 44:20-45:9.) Plaintiff's interrogatory responses and deposition testimony contained no facts establishing that Volkswagen brakes, clutches, gaskets, or other asbestos-containing parts were present at the service stations. The discovery record is therefore devoid of facts supporting Plaintiff's assertion that she was exposed to Volkswagen's asbestos-containing products at the service stations where she worked between 1971 and 1987.

Plaintiff's

discovery responses were devoid of facts supporting her assertion that she was exposed to an asbestos-containing product for which Volkswagen was responsible. The responses support an inference that Plaintiff lacks and cannot reasonably obtain evidence to support her claims against Volkswagen. Accordingly, Volkswagen meets its initial burden on summary judgment. The burden shifts to Plaintiff.

ii. Plaintiff's Burden

In

opposition, Plaintiff argues that there is sufficient evidence that Plaintiff's service stations performed brake work using Volkswagen's friction materials, such as brakes and clutches. (Opp. at p. 4.) Plaintiff submits additional excerpts from her deposition testimony, Mr. Salerno's deposition testimony, Ms. Salerno's deposition testimony, Mr. Jessup's deposition testimony, Volkswagen's responses to written discovery from other matters, prior deposition testimony of Volkswagen's corporate representative from a different matter, and invoices produced during Mr. Salerno's deposition. The court sustained Volkswagen's objection to the prior testimony of Volkswagen's corporate representative. The excerpts from the deposition of Mr. Jessup appear to be the same excerpts Volkswagen already submitted with its moving papers.

Ms.

Marschik testified that she had no specific recollection of seeing any documents at the service stations with the name Volkswagen on them. (Halbany Decl., Exh. A at 457:23-458:5.) Ms. Marschik testified that her duties

at the service stations included taking care of the books, banking, accounts receivable, accounts payable, payroll, taxes, and permits. (Halbany Decl., Exh. E at 43:24-44:4.) Ms.

Marschik recalls that the Salerno service center ("Salerno") used OEM parts from a number of manufacturers, including Volkswagen, Honda, Nissan, and Mazda, among others. (Id. at 67:9-24.) Of the Volkswagen OEM parts, Ms.

Marschik recalls that the shops used brakes. (Id. at 73:20-23 ["Q: Same questions for Volkswagen. Did the work that you saw using Volkswagen dealer parts, did that include brake work? A: Brakes."].)

Mr.

Salerno testified that he ordered parts for the family shops from a mix of dealerships and shops selling aftermarket parts. (Halbany Decl., Exh. B at 27:2-19.) Mr. Salerno ordered OEM parts for Volkswagen vehicles from a Volkswagen dealership in Redlands (Id. at 28:11-29:4 ["Q: And was there any kind of formal policy when you would decide to go and get a part from a dealership instead of a parts house? Or did it just depend on what was available and how much it cost at the time? A: What was available and what it cost. I mean most, most parts that aren't available aftermarket would be needed to be purchased through the dealership—or a specific type of part that we would prefer to have original equipment. Q: And when you say that there were parts where you would prefer the original equipment, if I say 'OEM,' is that—A: Yes; original equipment manufacturer. Usually electronics, emission-related. At that time emissions were just kind of beginning. But there was a Volkswagen dealership. I believe it was Felix in Redlands, over on Alhambra Street."].)

Plaintiff

also provides Volkswagen's responses to discovery from other matters. (Halbany Decl., Exhs. H, L.) Volkswagen previously admitted that vehicles and friction materials "contained some amounts of chrysotile as a fixed, bonded agent in a non-friable resinous matrix, up to the 1980's, i.e. the 1980 through the 1988 model years...because the manufacturers of the friction materials concluded that such resinous matrices of materials provided optimum performance and, upon information and belief, they had no alternative compositions they had adequately tested or made available at the times that such materials were used." (Halbany Decl., Exh. H at p.36.) Volkswagen also admitted that it imported Volkswagen brand "brake shoes and brake pads containing some amount of chrysotile" between 1956 and 1985. (Id., Exh. L at p.13.)

Plaintiff's

evidence is sufficient to support her claims that she was exposed to an asbestos-containing product for which Volkswagen was responsible. Plaintiff's deposition testimony supports an inference that Volkswagen brakes were present at the service stations where she worked. Plaintiff knew what brand parts the service stations ordered because she was responsible for paying the bills and invoices for parts ordered for the service stations. (Halbany Decl., Exh. E at 63:23-64:10, 67:9-24 [""Q: And how did you come to learn that these brands were being used, installed and removed, these brands of equipment? A: Well...I—I'm paying, you know, all—all the bills that came in, so there are invoices, and I was in charge of count - -- accounts payable...Q: Okay. Would you see brand names on invoices and bills and things like that? A: Yes."].) Ms. Marschik recalls that the service stations ordered Volkswagen OEM brakes for brake work performed at the service stations. (Id. at 73:20-23.) Additionally, Mr. Salerno recalls that he purchased OEM parts from dealerships, including from a Volkswagen dealer in Redlands, if a specific part was not available aftermarket. (Id., Exh. B at 28:11-29:4.) Ms. Marschik's testimony regarding her knowledge of the brands the service stations ordered and her recollection that the stations used OEM Volkswagen brakes, coupled with Mr. Salerno's recollection that the stations ordered parts periodically from Volkswagen dealers, support an inference that OEM Volkswagen brakes were present at Ms. Marschik's worksite. Volkswagen's prior interrogatory responses admit that its friction components from this time period contained asbestos support an inference that the brakes present at the service stations contained asbestos. (Halbany Decl., Exh. H at p.36, Exh. L at p.13.) Ms. Marschik's interrogatory responses stating she worked in an office open to the auto shop supports an inference that she was exposed to brake dust when mechanics worked with brakes in the shop. (Lweis Decl., Exh. D at p.3.) Plaintiff's evidence thus supports an inference that she was exposed to Volkswagen's asbestos-containing brakes.

Lineaweaver

v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409 is instructive here. A defendant there, Plant, was the exclusive distributor of insulation products marketed under the Pabco trademark. (Lineaweaver, supra, 31 Cal.App.4th at p. 1413.) One plaintiff, Lineaweaver, was a laborer at a refinery. (Id.) The evidence was sufficient to support an inference that Lineaweaver was exposed to Plant's asbestos products because Plant's insulation was at his worksite, Plant was the exclusive distributor in the area of Pabco asbestos insulation products at the relevant time, Lineaweaver worked directly with the asbestos insulation, Lineaweaver worked throughout the refinery which had insulation over two-thirds of its pipes and equipment, Lineaweaver saw boxes of

Pabco products at the refinery, Plant was a significant supplier of asbestos products, performing about 50% of the insulation work at the refinery, and another major insulation contractor used Pabco insulation as fill-in supplies, constituting another 10 to 15 percent of the refinery's insulation installed by one particular contractor. (Id., at pp. 1419-1420.) Although there was no direct evidence that the plaintiff was exposed to Plant's insulation, the significant circumstantial evidence was sufficient to support a reasonable inference of exposure. (Id., at p. 1420.)

Here, like in Lineaweaver, there is no direct evidence that Ms. Marschik was present when mechanics at the service stations where she worked were replacing brakes. However, evidence that Ms. Marschik paid invoices for Volkswagen brakes, that Mr. Salerno ordered OEM parts periodically from a Volkswagen dealer, that Volkswagen brakes contained asbestos during this time period, and that Ms. Marschik worked in an office open to the auto shop where brake work took place constitutes circumstantial evidence that Ms. Marschik was exposed to asbestos-containing Volkswagen brakes. The discovery responses and deposition testimony therefore contain sufficient circumstantial evidence to support Plaintiff's claims against Volkswagen.

Plaintiff's discovery responses contained sufficient facts to support her claim that she was exposed to asbestos by Volkswagen brake products. Accordingly, Volkswagen fails to meet its initial burden on summary judgment. The motion for summary judgment is denied.

C.

Fraud

Volkswagen

moves for summary adjudication of the fraud-based causes of action for (1) false representation and (2) intentional tort/intentional failure to warn/concealment (hereinafter "fraudulent concealment") on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Volkswagen misrepresented the safety of its products or that it had a duty to disclose the hazards of its products to her.

False

representation under Restatement of Torts section 402B establishes

“liability for injuries caused by justifiable reliance on false advertising.” (Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1750.) Under this section “ “[o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.” [Citation.]” (Id. at pp. 1750-1751.) “The rule ‘is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.’ [Citation.]” (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the “reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.” [Citation.]” (Westlye, supra, 17 Cal.App.4th at p. 1751.)

The elements

of a cause of action for fraudulent concealment or fraud by non-disclosure are: “(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud by non-disclosure or concealment: “ ‘(1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the

defendant makes partial representations but also suppresses some material facts. [Citation.]' " (LiMandri v. Judkins (1997) 52

Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, "As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties." (Id. at p. 337.) Unlike products liability, where there is a "general principle that a manufacturer has a duty to warn consumers of a product's hazards and faults," a duty to disclose material facts arises in the fraud context "only where there is already a sufficient relationship or transaction between the parties." (Bigler-Engler, supra, 7 Cal.App.5th at p.312.)

i.

Defendant's Burden: Factually Devoid

Volkswagen

moves for summary adjudication of the causes of action for false representation and fraudulent concealment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Volkswagen made a false representation to her or that it concealed the safety of its products. (Motion at pp. 14-18 ["Plaintiff utterly fails to proffer any evidence to establish the "how, when, where, to whom and by what means" any alleged misrepresentations were made by VWGoA to Plaintiff. (UMF 10- 11.) Plaintiff avers no specific quotation or content, no allegation of a particular speaker or writer of the representations or of how or why such person should be considered to have been speaking for VWGoA, no allegation of a particular forum where the representations were made, no allegation of a particular time the representations were made, no allegations of the context in which the representations were made or reasons they were made, and no allegations of the audience who heard or read the purported representations...Plaintiff's responses to discovery lack specific facts regarding exactly what VWGoA knew about the potential hazards of dust from its asbestos-containing automotive friction products and when VWGoA knew it. All of the information that Plaintiff alleges VWGoA concealed from Plaintiff was publicly available information: German laws protecting workers from asbestos and regulating asbestos as well as published articles in medical and scientific literature regarding asbestos were publicly available; United States laws and regulations regarding asbestos were public; OSHA regulations regarding asbestos were always public. (UMF 10-12.) Thus, Plaintiff's responses contain no facts or evidence establishing that VWGoA possessed any superior knowledge unknown to the public or that VWGoA actively concealed any such information from Plaintiff

with intent to defraud him.”].)

In

opposition, Plaintiff argues that “VW’s actions in failing to disclose the deadly hazards created by its products while knowing of such hazards is the type of nondisclosure that constitutes false representation. VW is not entitled to summary adjudication of this issue.” (Opp. at p.14.) Plaintiff also argues that Volkswagen is not entitled to summary adjudication of the cause of action for fraudulent concealment because “VW presents no evidence to meet its burden that Ms. Marschik was not exposed to asbestos as a result of work done on VW vehicles in close proximity to her, nor does it show that it warned of the dangers created by that asbestos.” (Id.)

When

Volkswagen asked Plaintiff to state all facts supporting her causes of action for false representation and fraudulent concealment, Plaintiff responded by incorporating significant portions of her response to interrogatory number 1. Plaintiff also responded by referencing OSHA regulations, EPA reports, and a report by its industrial hygienist to show that Volkswagen knew of the hazards posed by asbestos to workers handling asbestos. (Lewis Decl., Exh. D at pp.14-17.) For example, Plaintiff’s interrogatory responses reference a response Volkswagen wrote to a 1986 EPA report about the hazards of asbestos, stating Volkswagen recognized “the fact that exposure to certain levels of asbestos fiber can be a health risk.” (Id. at p.15.) However, Volkswagen had not found a substitute for asbestos because “there are very few alternate materials which have the total combination of the desirable characteristics found in asbestos...A substitute which results in unacceptable vehicle performance or safety, or is more harmful than asbestos to workers, is an unacceptable substitute.” (Id.) Plaintiff further responded:

“VWGA and its

parent Volkswagen AG engaged in intentional concealment and fraudulent concealment of the asbestos-related hazards of their products known to them, via partial-truth statements about their safety during normal use, handling, inspection, maintenance, and replacement. VWGA and Volkswagen represented to consumers and end users that their products could be used safely (sic), while concealing the fact that, as was well known to VWGA and Volkswagen AG, those products they released dangerous quantities of asbestos fibers when used in an ordinary and foreseeable manner. These affirmative misrepresentations and partial truths were intended to, and did, mislead consumers and end users into

believing that purchasing and using Volkswagen vehicles and Volkswagen brand replacement brakes, clutches, and gasket products was safe. These misrepresentations were either made directly to Plaintiff, to third parties such as Robert Salerno (sic), intending and reasonably expecting that the substance of those misrepresentations would be repeated to Plaintiff and/or that those third parties would rely on the misrepresentations and would purchase and use Volkswagen asbestos-containing products.”

(Lewis
Decl., Exh. D at p. 18.)

Ms.

Marschik stipulated at her deposition that she would not provide testimony regarding corporate knowledge for the defendants in this case. (Lewis Decl., Exh. H at 414:1-21.)

False
Representation

Volkswagen meets its initial burden to prove that Ms. Marschik lacks and cannot reasonably obtain evidence to support her cause of action for false representation. Volkswagen argues that Plaintiff failed to proffer evidence to establish that Volkswagen made misrepresentations to her. Plaintiff’s interrogatory responses state that Volkswagen misrepresented that its products were safe during normal use, handling, inspection, maintenance and replacement. (Lewis Decl., Exh. D at p. 18.) Additionally, the response states Volkswagen either made this representation directly to Ms. Marschik or to her husband with the reasonable expectation that it be repeated to Ms. Marschik. (Id.) The response fails to state the factual basis for Plaintiff’s assertion that Volkswagen misrepresented the safety of its products. The response lacks facts such as who made the representation and the contents of the representation. Plaintiff’s interrogatory response is devoid of facts supporting the cause of action for false representation. The discovery response regarding an alleged misrepresentation is no more specific than the allegations of the complaint. The response supports an inference that Plaintiff lacks and cannot reasonably obtain evidence to support the cause of action for false representation. Accordingly, Volkswagen meets its burden on summary adjudication as to the false representation cause of action.

Fraudulent

Concealment

Volkswagen meets its initial burden to prove that Ms.

Marschik lacks and cannot reasonably obtain evidence to support the cause of action for fraudulent concealment. The interrogatory responses fail to state the factual basis for Plaintiff's contention that Volkswagen owed Plaintiff a duty of disclosure. Plaintiff testified at her deposition that she never purchased parts from a Volkswagen dealership and did not have knowledge that anyone else at the service stations purchased Volkswagen parts. (Lewis Decl., Exh. H at 456:14-457:4.) Plaintiff's discovery responses are thus devoid of facts establishing that a transactional relationship between Plaintiff and Volkswagen existed giving rise to a duty to disclose.

Plaintiff's discovery responses therefore give rise to an inference that Plaintiff lacks and cannot reasonably obtain evidence to support her cause of action for fraudulent concealment. Accordingly, the burden shifts to Plaintiff.

ii.

Plaintiff's Burden

Plaintiff argues in opposition that Volkswagen is not entitled to summary adjudication of the false representation and fraudulent concealment causes of action because it failed to disclose the deadly hazards of its products. (Opp. at p.14.)

As

discussed, Plaintiff's interrogatory responses lack facts supporting the cause of action for false representation, including what misrepresentation Volkswagen made and who made the misrepresentation. Plaintiff's argument that Volkswagen failed to disclose the deadly hazards created by its products is unavailing because a cause of action for false representation requires a misrepresentation. Plaintiff fails to present affirmative evidence that Volkswagen made such a misrepresentation to support the cause of action for false representation.

As for the cause of action for fraudulent concealment, Plaintiff argues in the separate statement, citing *Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613,

that a transactional relationship is not necessary for a duty to disclose to arise supporting a cause of action for fraudulent concealment. However, it is well-settled that a duty to disclose material facts arises in the fraud context “only where there is already a sufficient relationship or transaction between the parties.” (Bigler-Engler, supra, 7 Cal.App.5th at p.312.) As discussed, the interrogatory responses asking Plaintiff to state all facts supporting the cause of action for fraudulent concealment failed to state the factual basis for Plaintiff’s assertion that Volkswagen owed a duty to disclose the hazards of its products to Plaintiff. Plaintiff presents no affirmative evidence that a transactional relationship existed between Plaintiff and Volkswagen giving rise to a duty to disclose.

Accordingly, Plaintiff fails to present affirmative evidence supporting her causes of action for false representation and fraudulent concealment against Volkswagen. The motions for summary adjudication of the causes of action for false representation and fraudulent concealment are granted.

D.

Breach of Express and Implied Warranty

Volkswagen moves for summary adjudication of the cause of action for breach of implied warranty on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that Volkswagen breached any warranty to Plaintiff. (Motion at p. 18.)

“Vertical privity is a prerequisite in California for recovery on a theory of breach of the implied warranties of fitness and merchantability.” (United States Roofing, Inc. v. Credit Alliance Corp. (1991) 228 Cal.App.3d 1431, 1441, internal citations omitted.) However, it is well-settled that “employee[s] should be considered a member of the industrial ‘family’ of the employer—whether corporate or private— and to thus stand in such privity to the manufacturer as to permit the employee[s] to be covered by warranties made to the purchaser-employer.” (Peterson v. Lamb Rubber Co. (1960) 54 Cal.2d 339, 347.)

Here, Plaintiff’s interrogatory responses state that “VWGA and its parent Volkswagen AG engaged

in intentional concealment and fraudulent concealment of the asbestos-related hazards of their products known to them, via partial-truth statements about their safety during normal use, handling, inspection, maintenance, and replacement.” (Lewis Decl., Exh. D at p.18.) Volkswagen’s motion for summary judgment was denied because it failed to meet its burden to show that Plaintiff lacks and cannot reasonably obtain evidence that she was exposed to an asbestos-containing product for which Volkswagen was responsible. There is no dispute that Ms. Marschik was an employee of the service centers she operated with her then-husband. As an employee of the service centers that purchased the products at issue, Ms. Marschik stands in privity with Volkswagen and is covered by the warranties made to those service centers. Because the motion for summary judgment was denied, triable issues of material fact remain over whether Volkswagen breached any implied or express warranties made to the service centers regarding the safety of its products. The motion for summary adjudication of the cause of action for breach of implied and express warranty is denied.

E.

Punitive Damages

When a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. “Although the clear and convincing evidentiary standard is a stringent one, ‘it does not impose on a plaintiff the obligation to “prove” a case for punitive damages at summary judgment [or summary adjudication.]’ [Citations.] Even so, ‘where the plaintiff’s ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.’ [Citation.]” (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 11581159.) For a corporate defendant, the oppression, fraud or malice “must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied “ ‘if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in “willful and conscious disregard of the rights or safety of others.” ’ [Citation.]” (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 (“Morgan”).) A plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure

of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id. at p. 1091.)

“ ‘[I]ntentionally marketing a defective product knowing that it might cause injury and death is ‘highly reprehensible.’ [Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205 Cal.App.4th 68, 85.) Punitive damages may be available when a defendant knows the dangers of asbestos, took action to protect its own employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1300.) Such evidence “was sufficient to show malice, that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id. at pp. 1300-1301.)

i.

Defendant’s Burden: Factually Devoid

Volkswagen moves for summary adjudication of the demand for punitive damages on the grounds that Plaintiff lacks and cannot reasonably obtain evidence establishing by clear and convincing evidence that Volkswagen acted with malice, fraud, or oppression. (Motion at pp. 19-20.)

In opposition, Plaintiff, citing Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270 (“Pfeifer”), argues “VW has admitted that the vehicles and friction materials (brake linings, brake pads, clutch facings) it sold, supplied and/or distributed contained asbestos from 1955 to at least 1988. The asbestos-containing brakes and/or brake linings sold by VW contained about 30% asbestos. VW also sold asbestos-containing gaskets from 1955 to the late 1980s. VW was aware that asbestos caused cancer at least by the mid-1970s. However, it never issued warnings to consumers regarding exposure to the asbestos in the Volkswagen vehicles it imported, sold, supplied and distributed. No such warning was issued by any entity related to the manufacture of Volkswagen vehicles until “the early 1980’s until approximately 1985,” and then only by the European Parts Exchange on its packages remanufactured brake shoes sold at Volkswagen dealerships. VW never included a statement in any of its owner manuals relating to the asbestos content of the brakes on its vehicles or a warning that compressed air should not be used to blow out its brakes. If fact,

VW continued to sell asbestos components for 10 years after it learned that breathing asbestos could cause cancer. Genuine issues of material fact remain for resolution on Plaintiff's claim for punitive damages and VW's motion for summary adjudication on this issue must be denied." (Opp. at pp.16-17.)

In Pfeifer, evidence was sufficient to establish by clear and convincing evidence that a manufacturer of gaskets, JCI, knew that asbestos was hazardous by the 1970s when the Occupational Safety and Health Administration ("OSHA") promulgated regulations requiring manufacturers of asbestos-based products to monitor concentrations of asbestos fibers in the air in its factories. (Pfeifer, supra, 220 Cal.App.4th at p.1300.) JCI also prepared safety data sheets for its sheet gaskets warning its employees that exposure to asbestos could cause asbestosis and cancer. (Id.) OSHA regulations also required manufacturers to place warning labels on products unless the fibers had been modified by a bonding agent that limited the asbestos released during foreseeable use of the gaskets. (Id.) JCI knew asbestos dust was released when its users replaced fragmented old. (Id.) Additionally, JCI knew products did not fully encapsulate the asbestos fibers and that removal methods resulted in concentrations of asbestos fibers that greatly exceeded ordinary background levels. (Id.) The evidence supported a finding that JCI acted with a conscious disregard for the safety of others because it understood that asbestos dust endangered workers and continued to sell a product that generated considerable asbestos dust without warnings. (Id. at pp.1300-1301.)

Here, Plaintiff's interrogatory responses state that Volkswagen should have known about the health hazards posed by its asbestos-containing vehicles and components to end users and bystanders because German law "required protections for workers working with asbestos, which included enclosure, effective exhaust and ventilation, cleaning of work areas after hours by workers in proper protection, and sequestration of street clothes." (Lewis Decl., Exh. D at p.27.) Additionally, Plaintiff's responses point to OSHA standards relating to asbestos to show that Volkswagen was on notice of the hazards of asbestos in its products:

"VWGA and Volkswagen AG knew of the OSHA federal guidelines for workplace asbestos exposure, which took effect in 1971...Those regulations advised that asbestos

fibers cause mesothelioma, lung cancer, and asbestosis; and the regulations expressly did not identify any known safe level of exposure for asbestos and mesothelioma and noted that 'it appears that levels of exposure which may be safe with regard to asbestosis are not safe with regard to mesothelioma.' VWGA and Volkswagen AG also knew that these regulations applied to any VWAG facility in which any employee was potentially exposed to asbestos fibers. Under these regulations, airborne concentrations of asbestos were required to be monitored and kept within short-term and long-term limits' medical examinations were required' and the records were required to be preserved. Required engineering methods included exhaust ventilation and wet methods of work. Required personal protective methods included respirators, special clothing, change rooms, separate lockers, and laundering services. Accumulating asbestos debris was required to be sealed and disposed of properly. Caution signs were required to be posted at the workplace."

(Lewis Decl., Exh.

D at pp.27-28.) The responses also state that Volkswagen was aware of EPA reports providing guidance on preventing asbestos disease among auto mechanics and proposing a ban on asbestos-containing brakes and clutches. (Id., Exh. D at pp.29-30.) The responses allege that Volkswagen fraudulently concealed the dangers associated with its asbestos-containing components and continued selling them despite this knowledge. (Id. at pp.30-32.)

Volkswagen satisfies its burden to

show that Plaintiff lacks and cannot reasonably obtain evidence to support her demand for punitive damages. Although Plaintiff's discovery responses state that Volkswagen knew based on German law, OSHA standards, and known uses of its products that end users of its asbestos-containing components would handle their products in a manner that released asbestos dust, there are no facts that Volkswagen was on notice that handling the brakes would expose others not directly working with the components, such as Ms. Marschik, to an increased risk of asbestos-related disease. In Pfeifer, a manufacturer knew of the exposure risks to end users because it knew removing its gaskets resulted in dust exceeding levels permitted by OSHA. Here, unlike in Pfeifer, there is no evidence that Volkswagen knew end users handling these components would expose others not directly working with them to hazardous levels of asbestos. Although Plaintiff's interrogatory response states Volkswagen should have known of the hazards posed to bystanders in addition to end users, Plaintiff points to regulations protecting workers working with asbestos, not bystanders who do not work directly with asbestos. There is no evidence in the discovery record that Volkswagen

knew of the hazards its products posed to bystanders like Ms. Marschik and continued to sell them without warning. Accordingly, Plaintiff's discovery responses are devoid of facts supporting the demand for punitive damages.

i.

Plaintiff's Burden

Plaintiff

argues that summary adjudication of the demand for punitive damages is not appropriate because Volkswagen knew its products contained asbestos, knew breathing asbestos could cause cancer, and continued to sell asbestos components for 10 years without warnings. (Opp. at p.17.) Plaintiff provides no affirmative evidence that Volkswagen knew the health hazards its products posed to bystanders like Plaintiff who did not work directly with its brakes and continued to sell its products without warnings. Plaintiff thus failed to present affirmative evidence supporting her demand for punitive damages. Accordingly, the motion for summary adjudication of the demand for punitive damages is granted.

IV.

Conclusion

Volkswagen meets its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Ms. Marschik was exposed to an asbestos-containing product for which it is responsible. Plaintiff meets her burden on summary judgment to present affirmative evidence supporting her claims against Volkswagen. Accordingly, the motion for summary judgment is denied. Volkswagen's motion for summary adjudication to the cause of action for breach of implied warranty is also denied for the same reasons as the motion for summary judgment.

Volkswagen satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Volkswagen engaged in conduct amounting to malice, fraud, or oppression. Volkswagen also satisfies its initial burden to prove that Plaintiff lacks and cannot reasonably obtain evidence that Volkswagen misrepresented the safety of its product or intentionally concealed the hazards of its products. Plaintiff failed to present affirmative evidence supporting her fraud-based causes of action and her demand for punitive damages. Volkswagen's motions for summary adjudication of the fraud-based causes of action and the demand for punitive damages are

granted.